

**The Articles of Association has been amended, to reflect to terms of the Amended and Restated Shareholders Agreement dated 10th April 2026, vide members resolution passed at the Extra Ordinary General Meeting of the Company held on 12th June 2026.*

ARTICLES OF ASSOCIATION*

OF

BLUNAV SYSTEM PRIVATE LIMITED

(INCORPORATED UNDER THE COMPANIES ACT, 2013)

These Articles consist of two chapters, Chapter A (the "General Articles") and Chapter B (the "Special Articles"). The provisions of the General Articles shall apply to all the matters to which they pertain, to the extent, and only in so far as they are not inconsistent with, the provisions of the Special Articles. Notwithstanding anything to the contrary contained in the General Articles, the Special Articles shall apply in respect of the matters covered thereby. In case of any conflict or inconsistency between the Special Articles on one hand and the General Articles on the other hand, the Special Articles shall prevail and in case of any conflict or inconsistency between the Special Articles on one hand and the Shareholders' Agreement (defined below), on the other hand, the Shareholders' Agreement shall prevail, provided that if the Special Articles are inconsistent with the Shareholders' Agreement, then the Special Articles shall be amended to align it with the Shareholders' Agreement.

CHAPTER A

APPLICATION OF TABLE 'F'

1. The Regulations contained in Table 'F' in the First Schedule to the Companies Act, 2013, shall apply to this Company in the same manner as if all such Regulations of Table 'F' are specifically contained in these Articles, subject to the modifications herein contained and except in so far as they are expressly or implicitly excluded by the following Articles. The provisions of Table 'F' of schedule 1 to the Companies Act, 2013 shall be applicable to the extent that they don't contradict with these Articles

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INTERPRETATION

I

(1) In these regulations-

- (a) "the Act" means the Companies Act, 2013,
- (b) "The Company" means Blunav System Private Limited
- (c) the seal means the common seal of the Company.

(2) Unless the context otherwise requires, words or expressions contained in these regulations shall bear the same meaning as in the Act or any statutory modification thereof in force at the date at which these regulations become binding on the company.

I (A) Preliminary

1. The Regulations contained in Table F of Companies Act, 2013 (hereinafter referred as the Act) so far as the same are applicable to a Private company will apply, except that such regulations as are embodied in these Articles of Association shall exclude corresponding Provisions in the Table F provided.
2. The words and expressions shall have the same meaning as in the Companies Act, 2013 in respect of the sections implemented.
3. The provisions of Companies Act, 2013 and Rules (if any) made thereunder shall prevail over this Articles of Association wherever they override the provisions of the Act.

I (B) Private Company

4. The Company is a Private Limited Company within the meaning of Section 2(68) of the Companies Act, 2013 read with the Companies (Amendment) Act, 2015 and accordingly:
 - a. The minimum paid-up capital of the Company shall be as may be decided by the subscribers



b. The right to transfer the shares of the Company shall be restricted and shall be subject to the provisions contained in this articles.

c. The number of members shall be limited to two hundred

Provided that where two or more persons hold one or more shares in a company jointly, they shall, for the purposes of this clause, be treated as a single member; provided further that:

i. Persons who are in the employment of the Company and

ii. Persons who, having been formerly in the employment of the company, were members of the company while in employment and have continued to be members after the employment ceased shall not be included in the number of members and

d. Any invitation to the public to subscribe for any securities of the company is prohibited.

5. The Authorized Share Capital of the Company shall be as specified in Clause 5 of the Memorandum of Association of the Company.

SHARE CAPITAL AND VARIATION OF RIGHTS

II

1. Subject to the provisions of the Act and these Articles, the shares in the capital of the company shall be under the control of the Directors who may issue, allot or otherwise dispose of the same or any of them to such persons, in such proportion and on such terms and conditions and either at a premium or at par and at such time as they may from time to time think fit.

2. (i) Every person whose name is entered as a member in the register of members shall be entitled to receive within two months after incorporation, in case of subscribers to the memorandum or after allotment or within one month after the application for the registration of transfer or transmission or within such other period as the conditions of issue shall be provided-

(a) One certificate for all his shares without payment of any charges; or

(b) Several certificates, each for one or more of his shares, upon payment of twenty rupees for each certificate after the first.

(ii) Every certificate shall be under the seal and shall specify the shares to which it relates and the amount paid - up thereon.



(iii) In respect of any share or shares held jointly by several persons, the company shall not be bound to issue more than one certificate, and delivery of a certificate for a share to one of several joint holders shall be sufficient delivery to all such holders

3. (i) If any share certificate be worn out, defaced, mutilated or torn or if there be no further space on the back for endorsement of transfer, then upon production and surrender thereof to the company, a new certificate may be issued in lieu thereof, and if any certificate is lost or destroyed then upon proof thereof to the satisfaction of the company and on execution of such indemnity as the company deem adequate, a new certificate in lieu thereof shall be given. Every certificate under this Article shall be issued on payment of twenty rupees for each certificate.

(ii) The provisions of Articles (2) and (3) shall mutatis mutandis apply to debentures of the company.

4. Except as required by law, no person shall be recognised by the company as holding any share upon any trust, and the company shall not be bound by, or be compelled in any way to recognise (even when having notice thereof) any equitable, contingent, future or partial interest in any share, or any interest in any fractional part of a share, or (except only as by these regulations or by law otherwise provided) any other rights in respect of any share except an absolute right to the entirety thereof in the registered holder.

5. (i) The company may exercise the powers of paying commissions conferred by sub-section (6) of section 40, provided that the rate per cent or the amount of the commission paid or agreed to be paid shall be disclosed in the manner required by that section and rules made thereunder.

(ii) The rate or amount of the commission shall not exceed the rate or amount prescribed in rules made under sub-section (6) of section 40.

(iii) The commission may be satisfied by the payment of cash or the allotment of fully or partly paid shares or partly in the one way and partly in the other.

6. (i) If at any time the share capital is divided into different classes of shares the rights attached to any class (unless otherwise provided by the terms of issue of the shares of that class) may subject to the provisions of section 48 and whether or not the company is being wound up be



varied with the consent in writing of the holders of three-fourths of the issued shares of that class or with the sanction of a special resolution passed at a separate meeting of the holders of the shares of that class.

(ii) To every such separate meeting, the provisions of these regulations relating to general meetings shall mutatis mutandis apply, but so that the necessary quorum shall be at least two persons holding at least one-third of the issued shares of the class in question.

7. The rights conferred upon the holders of the shares of any class issued with preferred or other rights shall not, unless otherwise expressly provided by the terms of issue of the shares of that class, be deemed to be varied by the creation or issue of further shares ranking *pari passu* therewith
8. Subject to the provisions of section 55, any preference shares may, with the sanction of an ordinary resolution, be issued on the terms that they are to be redeemed on such terms and in such manner as the company before the issue of the shares may, by special resolution, determine.

LIEN

9. (i) The company shall have a first and paramount lien-
 - (a) On every share (not being a fully paid share), for all monies (whether presently payable or not) called, or payable at a fixed time, in respect of that share; and
 - (b) on all shares (not being fully paid shares) standing registered in the name of a single person, for all monies presently payable by him or his estate to the company:
Provided that the Board of directors may at any time declare any share to be wholly or in part exempt from the provisions of this clause.
 - (ii) The company's lien, if any, on a share shall extend to all dividends payable and bonuses declared from time to time in respect of such shares.
10. The company may sell, in such manner as the Board thinks fit, any shares on which the company has a lien:



Provided that no sale shall be made-

- (a) Unless a sum in respect of which the lien exists is presently payable; or
- (b) until the expiration of fourteen days after a notice in writing stating and demanding payment of such part of the amount in respect of which the lien exists as is presently payable, has been given to the registered holder for the time being of the share or the person entitled thereto by reason of his death or insolvency.

11. (i) To give effect to any such sale, the Board may authorise some person to transfer the shares sold to the purchaser thereof.
 - (ii) The purchaser shall be registered as the holder of the shares comprised in any such transfer.
 - (iii) The purchaser shall not be bound to see to the application of the purchase money, nor shall his title to the shares be affected by any irregularity or invalidity in the proceedings in reference to the sale.
12. (i) The proceeds of the sale shall be received by the company and applied in payment of such part of the amount in respect of which the lien exists as is presently payable.
 - (ii) The residue, if any, shall, subject to a like lien for sums not presently payable as existed upon the shares before the sale, be paid to the person entitled to the shares at the date of the sale.

CALLS ON SHARES

13. (i) The Board may, from time to time, make calls upon the members in respect of any monies unpaid on their shares (whether on account of the nominal value of the shares or by way of premium) and not by the conditions of allotment thereof made payable at fixed times:
Provided that no call shall exceed one-fourth of the nominal value of the share or be payable at less than one month from the date fixed for the payment of the last preceding call.
 - (ii) Each member shall, subject to receiving at least fourteen days' notice specifying the time or times and place of payment, pay to the company, at the time or times and place so specified, the amount called on his shares.
 - (iii) A call may be revoked or postponed at the discretion of the Board.
14. A call shall be deemed to have been made at the time when the resolution of the Board



authorizing the call was passed and may be required to be paid by instalments.

15. The joint holders of a share shall be jointly and severally liable to pay all calls in respect thereof.

16. (i) If a sum called in respect of a share is not paid before or on the day appointed for payment thereof, the person from whom the sum is due shall pay interest thereon from the day appointed for payment thereof to the time of actual payment at ten per cent per annum or at such lower rate, if any, as the Board may determine.

(ii) The Board shall be at liberty to waive payment of any such interest wholly or in part.

17. (i) Any sum which by the terms of issue of a share becomes payable on allotment or at any fixed date, whether on account of the nominal value of the share or by way of premium, shall, for the purposes of these regulations, be deemed to be a call duly made and payable on the date on which by the terms of issue such sum becomes payable.

(ii) In case of non-payment of such sum, all the relevant provisions of these regulations as to payment of interest and expenses, forfeiture or otherwise shall apply as if such sum had become payable by virtue of a call duly made and notified.

18. The Board-

(a) may, if it thinks fit, receive from any member willing to advance the same, all or any part of the monies uncalled and unpaid upon any shares held by him; and

(b) upon all or any of the monies so advanced, may (until the same would, but for such advance, become presently payable) pay interest at such rate not exceeding, unless the company in general meeting shall otherwise direct, twelve per cent per annum, as may be agreed upon between the Board and the member paying the sum in advance.

TRANSFER OF SHARES

19. (i) The instrument of transfer of any share in the company shall be executed by or on behalf of both the transferor and transferee.

(ii) The transferor shall be deemed to remain a holder of the share until the name of the transferee is entered in the register of members in respect thereof



20. The Board may, subject to the right of appeal conferred by section 58 decline to register-
- (a) The transfer of a share, not being a fully paid share, to a person of whom they do not approve; or
 - (b) Any transfer of shares on which the company has a lien.
21. The Board may decline to recognise any instrument of transfer unless-
- (a) The instrument of transfer is in the form as prescribed in rules made under sub-section (1) of section 56;
 - (b) the instrument of transfer is accompanied by the certificate of the shares to which it relates, and such other evidence as the Board may reasonably require to show the right of the transferor to make the transfer; and
 - (c) The instrument of transfer is in respect of only one class of shares.
22. On giving not less than seven days, previous notice in accordance with section 91 and rules made thereunder, the registration of transfers may be suspended at such times and for such periods as the Board may from time to time determine:

Provided that such registration shall not be suspended for more than thirty days at any one time or for more than forty-five days in the aggregate in any year.

TRANSMISSION OF SHARES

23. (i) On the death of a member, the survivor or survivors where the member was a joint holder, and his nominee or nominees or legal representatives where he was a sole holder, shall be the only persons recognised by the company as having any title to his interest in the shares
- (ii) Nothing in clause (i) shall release the estate of a deceased joint holder from any liability in respect of any share which had been jointly held by him with other persons.
24. (i) Any person becoming entitled to a share in consequence of the death or insolvency of a member may, upon such evidence being produced as may from time to time properly be required by the Board and subject as hereinafter provided, elect, either-



- (a) To be registered himself as holder of the share; or
- (b) To make such transfer of the share as the deceased or insolvent member could have made.
- (ii) The Board shall, in either case, have the same right to decline or suspend registration as it would have had, if the deceased or insolvent member had transferred the share before his death or insolvency.
25. (i) If the person so becoming entitled shall elect to be registered as holder of the share himself, he shall deliver or send to the company a notice in writing signed by him stating that he so elects.
- (ii) If the person aforesaid shall elect to transfer the share, he shall testify his election by executing a transfer of the share.
- (iii) All the limitations, restrictions and provisions of these regulations relating to the right to transfer and the registration of transfers of shares shall be applicable to any such notice or transfer as aforesaid as if the death or insolvency of the member had not occurred and the notice or transfer were a transfer signed by that member.
26. A person becoming entitled to a share by reason of the death or insolvency of the holder shall be entitled to the same dividends and other advantages to which he would be entitled if he were the registered holder of the share, except that he shall not, before being registered as a member in respect of the share, be entitled in respect of it to exercise any right conferred by membership in relation to meetings of the company:
- Provided that the Board may, at any time, give notice requiring any such person to elect either to be registered himself or to transfer the share, and if the notice is not complied with within ninety days, the Board may thereafter withhold payment of all dividends, bonuses or other monies payable in respect of the share, until the requirements of the notice have been complied with.

FORFEITURE OF SHARES

27. If a member fails to pay any call, or instalment of a call, on the day appointed for payment



thereof, the Board may, at any time thereafter during such time as any part of the call or instalment remains unpaid, serve a notice on him requiring payment of so much of the call or instalment as is unpaid, together with any interest which may have accrued.

28. The notice aforesaid shall-

- (a) Name a further day (not being earlier than the expiry of fourteen days from the date of service of the notice) on or before which the payment required by the notice is to be made; and
- (b) State that, in the event of non-payment on or before the day so named, the shares in respect of which the call was made shall be liable to be forfeited

29. If the requirements of any such notice as aforesaid are not complied with, any share in respect of which the notice has been given may, at any time thereafter, before the payment required by the notice has been made, be forfeited by a resolution of the Board to that effect.

30. (i) A forfeited share may be sold or otherwise disposed of on such terms and in such manner as the Board thinks fit.

- (ii) At any time before a sale or disposal as aforesaid, the Board may cancel the forfeiture on such terms as it thinks fit.

31. (i) A person whose shares have been forfeited shall cease to be a member in respect of the forfeited shares, but shall, notwithstanding the forfeiture, remain liable to pay to the company all monies which, at the date of forfeiture, were presently payable by him to the company in respect of the shares.

- (ii) The liability of such person shall cease if and when the company shall have received payment in full of all such monies in respect of the shares.

32. (i) A duly verified declaration in writing that the declarant is a director, the manager or the secretary, of the company, and that a share in the company has been duly forfeited on a date stated in the declaration, shall be conclusive evidence of the facts therein stated as against all persons claiming to be entitled to the share;

- (ii) The company may receive the consideration, if any, given for the share on any sale or



disposal thereof and may execute a transfer of the share in favour of the person to whom the share is sold or disposed of;

(iii) The transferee shall thereupon be registered as the holder of the share; and

(iv) The transferee shall not be bound to see to the application of the purchase money, if any, nor shall his title to the share be affected by any irregularity or invalidity in the proceedings in reference to the forfeiture, sale or disposal of the share.

33. The provisions of these regulations as to forfeiture shall apply in the case of non-payment of any sum which, by the terms of issue of a share, becomes payable at a fixed time, whether on account of the nominal value of the share or by way of premium, as if the same had been payable by virtue of a call duly made and notified.

ALTERATION OF CAPITAL

34. The company may, from time to time, by ordinary resolution increase the share capital by such sum, to be divided into shares of such amount, as may be specified in the resolution.

35. Subject to the provisions of section 61, the company may, by ordinary resolution, -

(a) Consolidate and divide all or any of its share capital into shares of larger amount than its existing shares;

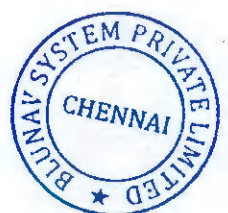
(b) Convert all or any of its fully paid-up shares into stock, and reconvert that stock into fully paid-up shares of any denomination;

(c) Sub-divide its existing shares or any of them into shares of smaller amount than is fixed by the memorandum;

(d) Cancel any shares which, at the date of the passing of the resolution, have not been taken or agreed to be taken by any person.

36. Where shares are converted into stock, -

(a) the holders of stock may transfer the same or any part thereof in the same manner as, and subject to the same regulations under which, the shares from which the stock arose might before the conversion have been transferred, or as near thereto as circumstances admit:



Provided that the Board may, from time to time, fix the minimum amount of stock transferable, so, however, that such minimum shall not exceed the nominal amount of the shares from which the stock arose.

(b) the holders of stock shall, according to the amount of stock held by them, have the same rights, privileges and advantages as regards dividends, voting at meetings of the company, and other matters, as if they held the shares from which the stock arose; but no such privilege or advantage (except participation in the dividends and profits of the company and in the assets on winding up) shall be conferred by an amount of stock which would not, if existing in shares, have conferred that privilege or advantage.

(c) Such of the regulations of the company as are applicable to paid-up shares shall apply to stock and the words "share" and "shareholder" in those regulations shall include "stock" and "stock-holder" respectively.

37. The company may, by special resolution, reduce in any manner and with, and subject to, any incident authorised and consent required by law,-

- (a) Its share capital;
- (b) Any capital redemption reserve account; or
- (c) Any share premium account.

CAPITALISATION OF PROFIT

38. i) The company in general meeting may, upon the recommendation of the Board, resolve-

- (a) that it is desirable to capitalise any part of the amount for the time being standing to the credit of any of the company's reserve accounts, or to the credit of the, profit and loss account, or otherwise available for distribution; and
- (b) That such sum be accordingly set free for distribution in the manner specified in clause (ii) amongst the members who would have been entitled thereto, if distributed by way of dividend and in the same proportions.
- (ii) The sum aforesaid shall not be paid in cash but shall be applied, subject to the provision contained in clause (iii), either in or towards-



- (A) paying up any amounts for the time being unpaid on any shares held by such members respectively;
- (B) paying up in full, unissued shares of the company to be allotted and distributed, credited as fully paid-up, to and amongst such members in the proportions aforesaid;
- (C) Partly in the way specified in sub-clause (A) and partly in that specified in sub-clause (B);
- (D) A securities premium account and a capital redemption reserve account may, for the purposes of this regulation, be applied in the paying up of unissued shares to be issued to members of the company as fully paid bonus shares;
- (E) The Board shall give effect to the resolution passed by the company in pursuance of this regulation.

39. (i) Whenever such a resolution as aforesaid shall have been passed, the Board shall-

- (a) Make all appropriations and applications of the undivided profits resolved to be capitalised thereby, and all allotments and issues of fully paid shares if any; and
- (b) Generally do all acts and things required to give effect thereto.

(ii) The Board shall have power-

- (a) To make such provisions, by the issue of fractional certificates or by payment in cash or otherwise as it thinks fit, for the case of shares becoming distributable in fractions; and
- (b) to authorise any person to enter, on behalf of all the members entitled thereto, into an agreement with the company providing for the allotment to them respectively, credited as fully paid-up, of any further shares to which they may be entitled upon such capitalisation, or as the case may require, for the payment by the company on their behalf, by the application thereto of their respective proportions of profits resolved to be capitalised, of the amount or any part of the amounts remaining unpaid on their existing shares;
- (iii) Any agreement made under such authority shall be effective and binding on such members.

BUYBACK OF SHARES

40. Notwithstanding anything contained in these articles but subject to the provisions of sections 68 to 70 and any other applicable provision of the Act or any other law for the time being in force, the company may purchase its own shares or other specified securities.



GENERAL MEETING

41. All general meetings other than annual general meeting shall be called extraordinary general meeting.
42. (i) The Board may, whenever it thinks fit, call an extraordinary general meeting.
(ii) If at any time directors capable of acting who are sufficient in number to form a quorum are not within India, any director or any two members of the company may call an extraordinary general meeting in the same manner, as nearly as possible, as that in which such a meeting may be called by the Board.

PROCEEDINGS AT GENERAL MEETING

43. (i) No business shall be transacted at any general meeting unless a quorum of members is present at the time when the meeting proceeds to business.
(ii) Save as otherwise provided herein, the quorum for the general meetings shall be as provided in section 103.
44. The chairperson, if any, of the Board shall preside as Chairperson at every general meeting of the company.
45. If there is no such Chairperson, or if he is not present within fifteen minutes after the time appointed for holding the meeting, or is unwilling to act as chairperson of the meeting, the directors present shall elect one of their members to be Chairperson of the meeting.
46. If at any meeting no director is willing to act as Chairperson or if no director is present within fifteen minutes after the time appointed for holding the meeting, the members present shall choose one of their members to be Chairperson of the meeting.

ADJOURNMENT OF MEETING

47. (i) The Chairperson may, with the consent of any meeting at which a quorum is present, and



shall, if so directed by the meeting, adjourn the meeting from time to time and from place to place.

(ii) No business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.

(iii) When a meeting is adjourned for thirty days or more, notice of the adjourned meeting shall be given as in the case of an original meeting.

(iv) Save as aforesaid, and as provided in section 103 of the Act, it shall not be necessary to give any notice of an adjournment or of the business to be transacted at an adjourned meeting.

VOTING RIGHTS

48. Subject to any rights or restrictions for the time being attached to any class or classes of shares,-

(a) On a show of hands, every member present in person shall have one vote; and

(b) On a poll, the voting rights of members shall be in proportion to his share in the paid-up equity share capital of the company.

49. A member may exercise his vote at a meeting by electronic means in accordance with section 108 and shall vote only once.

50. (i) In the case of joint holders, the vote of the senior who tenders a vote, whether in person or by proxy, shall be accepted to the exclusion of the votes of the other joint holders.

(ii) For this purpose, seniority shall be determined by the order in which the names stand in the register of members.

51. A member of unsound mind, or in respect of whom an order has been made by any court having jurisdiction in lunacy, may vote, whether on a show of hands or on a poll, by his committee or other legal guardian, and any such committee or guardian may, on a poll, vote by proxy.

52. Any business other than that upon which a poll has been demanded may be proceeded with, pending the taking of the poll.

53. No member shall be entitled to vote at any general meeting unless all calls or other sums



presently payable by him in respect of shares in the company have been paid

54. (i) No objection shall be raised to the qualification of any voter except at the meeting or adjourned meeting at which the vote objected to is given or tendered, and every vote not disallowed at such meeting shall be valid for all purposes.
- (ii) Any such objection made in due time shall be referred to the Chairperson of the meeting, whose decision shall be final and conclusive.

PROXY

55. The instrument appointing a proxy and the power-of-attorney or other authority, if any, under which it is signed or a notarised copy of that power or authority, shall be deposited at the registered office of the company not less than 48 hours before the time for holding the meeting or adjourned meeting at which the person named in the instrument proposes to vote, or, in the case of a poll, not less than 24 hours before the time appointed for the taking of the poll; and in default the instrument of proxy shall not be treated as valid.
56. An instrument appointing a proxy shall be in the form as prescribed in the rules made under section 105.
57. A vote given in accordance with the terms of an instrument of proxy shall be valid, notwithstanding the previous death or insanity of the principal or the revocation of the proxy or of the authority under which the proxy was executed, or the transfer of the shares in respect of which the proxy is given
- Provided that no intimation in writing of such death, insanity, revocation or transfer shall have been received by the company at its office before the commencement of the meeting or adjourned meeting at which the proxy is used.

BOARD OF DIRECTORS

58. The number of the directors and the names of the first directors shall be determined in writing by the subscribers of the memorandum or a majority of them.



(i) The following shall be the first directors of the Company:

1. Mr. Cherukuru Narayanan Sridharan
2. Mr. Suseendar

59. (i) The remuneration of the directors shall, in so far as it consists of a monthly payment, be deemed to accrue from day-to-day.

(ii) In addition to the remuneration payable to them in pursuance of the Act, the directors may be paid all travelling, hotel and other expenses properly incurred by them-

(a) in attending and returning from meetings of the Board of Directors or any committee thereof or general meetings of the company; or

(b) In connection with the business of the company.

60. The Board may pay all expenses incurred in getting up and registering the company.

61. The company may exercise the powers conferred on it by section 94 with regard to the keeping of a foreign register; and the Board may (subject to the provisions of that section) make and vary such regulations as it may think fit respecting the keeping of any such register.

62. All cheques, promissory notes, drafts, hundis, bills of exchange and other negotiable instruments, and all receipts for monies paid to the company, shall be signed, drawn, accepted, endorsed, or otherwise executed, as the case may be, by such person and in such manner as the Board shall from time to time by resolution determine.

63. Every director present at any meeting of the Board or of a committee thereof shall sign his name in a book to be kept for that purpose.

64. (i) Subject to the provisions of section 149, the Board shall have power at any time, and from time to time, to appoint a person as an additional director, provided the number of the directors and additional directors together shall not at any time exceed the maximum strength fixed for the Board by the articles.

(ii) Such person shall hold office only up to the date of the next annual general meeting of the company but shall be eligible for appointment by the company as a director at that meeting



subject to the provisions of the Act.

PROCEEDINGS OF THE BOARD

65. (i) The Board of Directors may meet for the conduct of business, adjourn and otherwise regulate its meetings, as it thinks fit.

(ii) A director may, and the manager or secretary on the requisition of a director shall, at any time, summon a meeting of the Board.

66. (i) Save as otherwise expressly provided in the Act, questions arising at any meeting of the Board shall be decided by a majority of votes.

(ii) In case of an equality of votes, the Chairperson of the Board, if any, shall have a second or casting vote.

67. The continuing directors may act notwithstanding any vacancy in the Board; but, if and so long as their number is reduced below the quorum fixed by the Act for a meeting of the Board, the continuing directors or director may act for the purpose of increasing the number of directors to that fixed for the quorum, or of summoning a general meeting of the company, but for no other purpose.

68. (i) The Board may elect a Chairperson of its meetings and determine the period for which he is to hold office.

(ii) If no such Chairperson is elected, or if at any meeting the Chairperson is not present within five minutes after the time appointed for holding the meeting, the directors present may choose one of their number to be Chairperson of the meeting.

69. (i) The Board may, subject to the provisions of the Act, delegate any of its powers to committees consisting of such member or members of its body as it thinks fit.

(ii) Any committee so formed shall, in the exercise of the powers so delegated, conform to any regulations that may be imposed on it by the Board.

70. (i) A committee may elect a Chairperson of its meetings.

(ii) If no such Chairperson is elected, or if at any meeting the Chairperson is not present



within five minutes after the time appointed for holding the meeting, the members present may choose one of their members to be Chairperson of the meeting.

71. (i) A committee may meet and adjourn as it thinks fit.

(ii) Questions arising at any meeting of a committee shall be determined by a majority of votes of the members present, and in case of an equality of votes, the Chairperson shall have a second or casting vote.

72. All acts done in any meeting of the Board or of a committee thereof or by any person acting as a director, shall, notwithstanding that it may be afterwards discovered that there was some defect in the appointment of any one or more of such directors or of any person acting as aforesaid, or that they or any of them were disqualified, be as valid as if every such director or such person had been duly appointed and was qualified to be a director

73. Save as otherwise expressly provided in the Act, a resolution in writing, signed by all the members of the Board or of a committee thereof, for the time being entitled to receive notice of a meeting of the Board or committee, shall be valid and effective as if it had been passed at a meeting of the Board or committee, duly convened and held.

CHIEF EXECUTIVE OFFICER, MANAGER, COMPANY SECRETARY OR CHIEF FINANCIAL OFFICER

74. Subject to the provisions of the Act,-

(i) A chief executive officer, manager, company secretary or chief financial officer may be appointed by the Board for such term, at such remuneration and upon such conditions as it may think fit; and any chief executive officer, manager, company secretary or chief financial officer so appointed may be removed by means of a resolution of the Board;

(ii) A director may be appointed as chief executive officer, manager, company secretary or chief financial officer

75. A provision of the Act or these regulations requiring or authorising a thing to be done by or to a director and chief executive officer, manager, company secretary or chief financial officer shall not be satisfied by its being done by or to the same person acting both as director and as, or in



place of, chief executive officer, manager, company secretary or chief financial officer.

SEAL

76. The Board shall provide for the safe custody of the seal. The seal of the company shall not be affixed to any instrument except by the authority of a resolution of the Board or of a committee of the Board authorised by it in that behalf and except in the presence of at least two directors and of the secretary or such other person as the Board may appoint for the purpose and those two directors and the secretary or other person afore said shall sign every instrument to which the seal of the company is so affixed in their presence.

DIVIDENDS AND RESERVE

77. The company in general meeting may declare dividends, but no dividend shall exceed the amount recommended by the Board.
78. Subject to the provisions of section 123, the Board may from time to time pay to the members such interim dividends as appear to it to be justified by the profits of the company.
79. (i) The Board may, before recommending any dividend, set aside out of the profits of the company such sums as it thinks fit as a reserve or reserves which shall, at the discretion of the Board, be applicable for any purpose to which the profits of the company may be properly applied, including provision for meeting contingencies or for equalizing dividends; and pending such application, may, at the like discretion, either be employed in the business of the company or be invested in such investments (other than shares of the company) as the Board may, from time to time, thinks fit.
- (ii) The Board may also carry forward any profits which it may consider necessary not to divide, without setting them aside as a reserve.
80. (i) Subject to the rights of persons, if any, entitled to shares with special rights as to dividends, all dividends shall be declared and paid according to the amounts paid or credited as paid on the shares in respect whereof the dividend is paid, but if and so long as nothing is paid upon any



of the shares in the company, dividends may be declared and paid according to the amounts of the shares.

(ii) No amount paid or credited as paid on a share in advance of calls shall be treated for the purposes of this regulation as paid on the share.

(iii) All dividends shall be apportioned and paid proportionately to the amounts paid or credited as paid on the shares during any portion or portions of the period in respect of which the dividend is paid; but if any share is issued on terms providing that it shall rank for dividend as from a particular date such share shall rank for dividend accordingly.

81. The Board may deduct from any dividend payable to any member all sums of money, if any, presently payable by him to the company on account of calls or otherwise in relation to the shares of the company.

82. (i) Any dividend, interest or other monies payable in cash in respect of shares may be paid by cheque or warrant sent through the post directed to the registered address of the holder or, in the case of joint holders, to the registered address of that one of the joint holders who is first named on the register of members, or to such person and to such address as the holder or joint holders may in writing direct.

(ii) Every such cheque or warrant shall be made payable to the order of the person to whom it is sent.

83. Any one of two or more joint holders of a share may give effective receipts for any dividends, bonuses or other monies payable in respect of such share.

84. Notice of any dividend that may have been declared shall be given to the persons entitled to share therein in the manner mentioned in the Act.

85. No dividend shall bear interest against the company.

ACCOUNTS

86. (i) The Board shall from time to time determine whether and to what extent and at what times



and places and under what conditions or regulations, the accounts and books of the company, or any of them, shall be open to the inspection of members not being directors.

(ii) No member (not being a director) shall have any right of inspecting any account or book or document of the company except as conferred by law or authorised by the Board or by the company in general meeting.

WINDING UP

87. Subject to the provisions of Chapter XX of the Act and rules made thereunder-

(i) If the company shall be wound up, the liquidator may, with the sanction of a special resolution of the company and any other sanction required by the Act, divide amongst the members, in specie or kind, the whole or any part of the assets of the company, whether they shall consist of property of the same kind or not.

(ii) For the purpose aforesaid, the liquidator may set such value as he deems fair upon any property to be divided as aforesaid and may determine how such division shall be carried out as between the members or different classes of members.

(iii) The liquidator may, with the like sanction, vest the whole or any part of such assets in trustees upon such trusts for the benefit of the contributories if he considers necessary, but so that no member shall be compelled to accept any shares or other securities whereon there is any liability.

INDEMNITY

88. Every officer of the company shall be indemnified out of the assets of the company against any liability incurred by him in defending any proceedings, whether civil or criminal, in which judgment is given in his favour or in which he is acquitted or in which relief is granted to him by the court or the Tribunal.



CHAPTER B

SPECIAL ARTICLES

Part I

- I. Subject to the requirements of Applicable Law (*defined below*), in the event of any inconsistency, contradiction or conflict (direct or indirect) between the provisions of Articles 1 to 88 in Chapter A and Articles in this Chapter B (referred to as the "**Amending Articles**"), the provisions of the Amending Articles shall prevail and apply over the provisions of Article 1 to Article 88 in Chapter A (both inclusive).
- II. Notwithstanding the provisions of Articles 1 to 88 in Chapter A, the Company and Shareholders (*as defined hereafter*) shall not be bound by, or subject to, any duties, obligations or covenants under Articles 1 to 88 of Chapter A where such provisions conflict in any manner with the Amending Articles.
- III. The provisions of these Amending Articles shall be applicable to, and bind, all the shareholders of the Company and to the Company itself.
- IV. The plain meaning of articles shall always be given effective, and no rules of harmonious construction shall be applied to resolve any conflict between Articles 1 to 88 in Chapter A and the Amending Articles.
- V. The provisions of Section 43 and 47 of the Act shall not be applicable to the Company.

89. DEFINITIONS

1. "**Act**" or "**Companies Act**" shall mean the Companies Act 2013 as may be applicable, and shall include all amendments, modifications and re-enactments of the foregoing; and includes rules, regulations, notifications, circulars and clarifications thereunder or thereto;
2. "**Adjourned Board Meeting**" shall have the meaning assigned to it under article 90.4;
3. "**Adjourned General Meeting**" shall have the meaning assigned to it under Article 91.3.2;
4. "**Affiliate**" shall mean any Person that, directly or indirectly, through one or more intermediaries, Controls, is Controlled by, or is under common Control with a Party and shall include a subsidiary or a holding company of such Person, and, in case of a Party being a natural person, shall include the Relative of such Party. Provided that, Affiliate in relation to the Lead Investors shall mean (a) their investment manager (including Piper Serica Advisors Private Limited) and any subsidiary or



affiliate of such investment manager; (b) any fund, collective investment scheme, trust, partnership (including, any co-investment partnership), special purpose vehicle or other vehicle or any subsidiary or affiliate of any of the foregoing, in which such Investor is a general or limited partner, significant shareholder, investment manager, investment advisor, settlor member of a management or investment committee or trustee; (c) any general partner of such Investor; (d) any fund, collective investment scheme, trust, partnership (including any co-investment partnership), special purpose vehicle or other vehicle or any subsidiary or affiliate of any of the foregoing, which is under the same management as that of such Investor or in which any general partner of such Investor, respectively, is a general partner, significant shareholder, investment manager or investment advisor, settlor member of a management or investment committee or trustee;

5. **"Applicable Law"** or **"Law/s"** shall mean applicable statutes, laws, regulations, ordinance, rule, judgment, notification, rule of common law, order, decree, bye-law, governmental approval, directive, guideline, requirement or other governmental restriction, or any similar form of decision of, or determination by, or any interpretation, policy or administration, having the force of law, by any governmental authority having jurisdiction over the matter in question, whether in effect as of the Effective Date or thereafter;
6. **"Articles of Association"** or **"Articles"** shall mean the articles of association of the Company, as amended from time to time;
7. **"Bad Leaver"** shall have the meaning assigned to it under Article 94.1.8;
8. **"Board"** shall mean the board of Directors of the Company;
9. **"Broad Based Anti Dilution Protection"** shall have the meaning assigned to it under Article 98.1;
10. **"Business"** means the business of, *inter alia*, providing technology solutions for airport operations and passenger processing, while enhancing safety, efficiency, and centralized management;
11. **"Business Day"** shall mean any day other than Saturday, Sunday or any day, on which scheduled commercial banks are open for regular banking business in Chennai and Mumbai;
12. **"Business Plan"** shall mean the business plan submitted by the Company to and approved by the Board;
13. **"Buy Back Amount"** shall have the meaning assigned to it under Article 93.2.1;
14. **"Buy Back Notice"** shall have the meaning assigned to it under Article 93.2.1;
15. **"Buy Back Option"** shall have the meaning assigned to it under Article 93.2.1;



16. **"Cause"** shall mean following reasons (in each case determined by the Board of the Company, after following principles of natural justice (allowing the relevant defaulting Founder to make representation before the Board) and without participation of the relevant Founder Director to the extent any such person is a Director on the Board, for which the Company may terminate the employment of the Founder with the Company:
- (i) any act or omission in relation to the Company or the shareholders of the Company involving moral turpitude, fraud, embezzlement of funds and / or any act of harassment at the workplace or failure to observe the Company's code of conduct;
 - (ii) failure to comply with lawful directions of the Company which has not been cured within 30 (thirty) days of the receipt of notice by the Board;
 - (iii) gross negligence, wilful misconduct or mismanagement causing material losses or damage to the Company which cannot or has not been remedied after giving reasonable notice or any other act or omission causing Material Adverse Effect;
 - (iv) initiation of any litigation (unless quashed /set aside within 90 (ninety)) days of initiation of such litigation) against or conviction by any court of law which involves any criminal offense or offences involving moral turpitude, other than an offence which, in the reasonable opinion of the board of directors, does not affect such employee's position in the Company or cast doubt upon their future ability or fitness to perform their duties hereunder;
 - (v) unauthorised material disclosure of any Confidential Information of the Company, which leads to Material Adverse Effect on the Company; and
 - (vi) breach of the non-compete and/or non-solicit provisions contained in the Transaction Documents, or breach of any other provision or the Employment Agreement which cannot or has not been remedied (if capable of remedy) or compensated within a period of 30 (thirty) days of the occurrence of such event, or violation of the Company's (where due process has been followed under such policy or any handbook of the Company and/or under Applicable Law while determining the same) or other documents or directions of the Company;
17. **"Charter Documents"** shall mean collectively the Memorandum (defined hereinafter) and the Articles;
18. **"Claims"** shall mean any losses, liabilities, claims, Damages, costs and expenses, including legal fees and disbursements in relation thereto;
19. **"Closing"** shall have the meaning ascribed to it in the SSA;
20. **"Closing Date"** shall have the meaning ascribed to it in the SSA;
21. **"Company"** shall mean BLUNAV SYSTEM PRIVATE LIMITED, a Company incorporated under the laws of India under Companies Act, 2013, with Corporate Identity Number U62010TN2026PTC189776 and having its registered address at No. 16/25, Ammanivasam Garden, Thirukalukundram, Kancheepuram – 603109 ;
22. **"Competitor"** shall have the same meaning as ascribed to it in the SHA;



23. **"Confidential Information"** means all information which might fairly be considered to be of a confidential nature or is marked and identified as confidential at the time of disclosure and includes, but is not limited to:
- (i) any business or technical information whether or not stored in any medium, relating to the Business of the Company (and/or those of its customers) including but not limited to financial information, equipment, documentation, strategies, marketing plans, pricing information, information relating to existing, previous and potential customers and contracts disclosed to any Party or its representatives;
 - (ii) information relating to the Company which is of significance or value to the Company or such information which is valuable to its competitors and is obtained whether (without limitation) in writing, pictorially, in machine-readable form or orally or in any media whatsoever, by any Party or its representatives from any other Party or its representatives; information derived from information falling within this definition; and
 - (iii) terms of the Agreement;
24. **"Consent Matters"** shall have the meaning as ascribed to it in the SHA;
25. **"Control"** (including, with its correlative meanings, the terms "Controlled by" or "under common Control with"), as used with respect to any Person means the direct or indirect beneficial ownership of or the right to vote in respect of, directly or indirectly, more than 50% (fifty per cent) of the voting shares or securities of a Person and/or the power to control the majority of the composition of the Board of Directors of a person and/or the power to direct the management or policies of a Person, whether obtained directly or indirectly, and whether obtained by ownership of share capital, through contract or otherwise or any or all of the above;
26. **"Cost"** shall with reference to a Founder, mean the aggregate price paid (as reflected in the Company's records) by the relevant Founder for purchasing/subscribing to the Securities held by such Founder in the Company;
27. **"Cure Period"** shall have the meaning assigned to it under Article 104.1;
28. **"Damages"** shall mean:
- (i) amounts payable in settlement, interest, court costs, costs of investigation, fees and expenses of attorneys, accountants, actuaries, and other experts, and other expenses of litigation or of any claim, default, or assessment;
 - (ii) any and all monetary (or where the context so requires, monetary equivalent of) damages, fines, fees, penalties, losses and out-of-pocket expenses (including without limitation any liability imposed under any award, writ, order, judgment, decree or direction passed or made by any Person);
29. **"Deed of Adherence"** shall mean the deed of adherence to be executed substantially in the format set out in the Agreement;
30. **"Dilution Instruments"** includes any Shares, securities, rights, options, warrants or arrangement (in writing) which are convertible into or entitle the holder to acquire or receive any Shares of the Company, or any rights to purchase or subscribe to Shares or securities by their terms convertible into or exchangeable for Shares; excluding any arrangement (whether oral or in writing) binding



the Company pursuant to which a bank or a financial institution is entitled to convert any amount due to it into Shares upon default by the Company;

31. **"Dilution Offer Notice"** shall have the meaning assigned to it under Article 98.3;
32. **"Directors"** shall mean the director(s) on the Board of the Company;
33. **"Dispute"** shall have the meaning assigned to it under Article 109.9.1;
34. **"Drag Along Notice"** shall have the meaning assigned to it under Article 93.3.3;
35. **"Drag Along Right"** shall have the meaning assigned to it under Article 93.3.1;
36. **"Drag Along Shares"** shall have the meaning assigned to it under Article 93.3.1;
37. **"Dragged Shareholders"** shall have the meaning assigned to it under Article 93.3.1;
38. **"Dragging Investor"** shall have the meaning assigned to it under Article 93.3.1;
39. **"Drag Sale"** shall have the meaning assigned to it under Article 93.3.1;
40. **"Encumbrance"** shall mean (i) any mortgage, charge (whether fixed or floating), pledge, lien, hypothecation, assignment, deed of trust, security interest or other encumbrance of any kind securing, or conferring any priority of payment in respect of, any obligation of any Person, including without limitation any right granted by a transaction which, in legal terms, is not the granting of security but which has an economic or financial effect similar to the granting of security under Law, (ii) any voting agreement, interest, option, right of first offer, refusal or transfer restriction in favour of any Person and (iii) any adverse claim as to title, possession or use and **"Encumber"** shall be construed accordingly;
41. **"Equity Securities" or "Securities"** shall mean equity capital, Equity Shares (including Acquired Shares), membership interests, partnership interests, joint ventures, or other ownership interests of a company or any options, warrants or other securities that are directly or indirectly convertible into, or exercisable or exchangeable for, such equity capital, Equity Shares, membership interests, partnership interests or other ownership interests (whether or not such derivative securities are issued);
42. **"Equity Shares"** shall mean the ordinary equity shares of the Company, having par value of INR 10 (Indian Rupees ten only) per share;
43. **"ESOP"** shall mean the options given to the Directors, officers or employees of the Company or of its holding company or subsidiary company or companies, if any, which gives such Directors, officers or employees, the benefit or right to purchase, or to subscribe for, the Equity Shares of the Company at a future date at a pre-determined price;
44. **"ESOP Scheme"** shall mean an employee stock option plan as approved by the Board and implemented by the Company for the benefit of the senior management and employees of the Company;



45. **"Exercise Notice"** shall have the meaning assigned to it under Article 97.2;
46. **"Exit Period"** shall have the meaning assigned to it under Article 93.1;
47. **"Financial Investor"** shall mean any Person engaged in the business of making financial investments and shall include any Affiliates of such Person;
48. **"Financial Statements"** shall mean the audited financial statements comprising the cash flow statement, balance sheet, statement of income, capitalization table, key metrics as of the relevant Financial Year end together with the auditor's report thereon and notes thereto prepared in accordance with Indian GAAP and Laws and the directors report for the relevant Financial Year;
49. **"Financial Year"** shall mean the period commencing April of each calendar year and ending on March 31 of the immediately succeeding calendar year, or such other period as may be determined by the Board of the Company to be the financial year for the Company;
50. **"First Unlock Date"** shall have the meaning assigned to it under Article 94.1.2;
51. **"FMV" / "Fair Market Value"** shall mean the fair market value computed in accordance with internationally accepted valuation methods and in accordance with Applicable Laws by an independent third party appointed by the Board with the consent of the Lead Investor 1;
52. **"Founder Director" or "Founder Directors"** shall have the meaning as provided under Article 90.1.1;
53. **"Founder 1"** shall mean Mr. Cherukuru Narayanan Sridharan, bearing PAN DGHPS4707Q residing at C/O Narayanan, F3 Block Ivy Crest Apartment, 2nd Street Arulmurugan Ramamurthy Nagar, Chromepet, Kancheepuram, Tamil Nadu- 600044
54. **"Founder 2"** shall mean Mr. Suseendar Marimuthu, bearing PAN GOVPS7191D residing at 16/25, Ammanivasam Garden, Thirukalukundram, Kancheepuram, Tamil Nadu- 603109
55. **"Fully Diluted Basis"** shall mean that the calculation is to be made assuming that all outstanding Equity Securities (whether or not by their terms then currently convertible, exercisable or exchangeable) whether or not due to the occurrence of an event or otherwise, have been converted, exercised or exchanged into the maximum number of Equity Shares issuable upon such conversion, exercise and exchange, as the case may be;
56. **"General Meeting"** shall mean the meeting of the Shareholders of the Company;
57. **"Good Leaver"** shall have the meaning assigned to it under Article 94.1.7;
58. **"Governmental Authority"** shall mean any relevant governmental or quasi-governmental authority, statutory authority or quasi-statutory or regulatory authority, administrative, monetary, fiscal or judicial body, department, commission, authority, tribunal, agency or stock



exchange or taxing authority or anybody entitled to exercise executive power or power of any nature or body or other organization to the extent that the rules, regulations, standards, requirements, procedures or orders of such authority, body or other organization have the force of Law;

- 59. **"IITM Incubation"** shall mean IITM Incubation Cell;
- 60. **"Indian GAAP"** shall mean generally accepted accounting principles applicable in India, consistently applied throughout the specified period and in the comparable period in the immediately preceding year;
- 61. **"Information"** shall have the meaning assigned to it under Article 107.1;
- 62. **"INR" or "Rs." Or "Rupees"** shall mean Indian Rupees;
- 63. **"Intellectual Property Materials"** means all documents, research, articles, blog posts, software, hardware, applications, photographic works, graphic works of any type and materials in any format or medium which are created or developed by the Company independently, to which the Founders had access, or by the Founders themselves during the tenure of their employment with the Company, or jointly by the Founders and the Company, pursuant to oral or written instructions by the Company in this behalf;
- 64. **"Investor Nominee" or "Investor Nominees"** means Lead Investor Director and/or the Lead Investor Observer;
- 65. **"IPO"** shall mean the initial public offering of the Equity Securities of the Company on a stock exchange as decided by the Board and the consequent listing of the Equity Securities of the Company on such stock exchange;
- 66. **"IP Rights"** shall mean all rights in and in relation to all intellectual property rights subsisting in the Intellectual Property Materials, products, software, etc. manufactured, developed, being developed and/or proposed to be developed by the Company, including all patents, patent applications, moral rights, trademarks, trade names, service marks, service names, brand names, internet domain names and sub-domains, inventions, processes, formulae, copyrights, business and product names, logos, slogans, trade secrets, industrial models, processes, designs, database rights, methodologies, computer programs (including all source codes), technical information, manufacturing, engineering and technical drawings, know-how, all pending applications for and registrations of patents, entity models, trademarks, service marks, copyrights, designs and internet domain names and sub-domains and all other intellectual property or similar proprietary rights of whatever nature (whether registered or not and including applications to register or rights to apply for registration) in each case anywhere in the world;
- 67. **"Issuance Ceiling"** shall have the meaning assigned to it under Article 97.1;
- 68. **"Issuance Notice"** shall have the meaning assigned to it under Article 97.1;



69. "Issuance Price" shall have the meaning assigned to it under Article 97.1;
70. "Issuance Shares" shall have the meaning assigned to it under Article 97.1;
71. "Key Management" shall mean the following Persons in relation to the Company or its subsidiaries:
- a. Persons occupying the office of chief executive officer, chief technology officer, chief operating officer, chief information officer, chief financial officer, chief marketing officer or any C-level officers of the Company and any office(s) held by the Founders; or
 - b. any employees with a total cost to the Company in excess of INR 30,00,000 (Indian Rupees Thirty Lakhs only) per annum; or
 - c. any employee holding ESOP of more than 1% (one percent) of the Company;
 - d. Persons defined as Key Managerial Personnel under Section 2(51) of the Companies Act, 2013;
72. "Lead Investor 1" shall mean **PIPER SERICA ANGEL FUND**, a Category I alternative investment fund registered with SEBI under the provisions of the SEBI (Alternative Investment Funds) Regulation, 2012, acting through its Trustee, Beacon Trusteeship Limited having its office at and represented by its investment manager, Piper Serica Advisors Private Limited, a limited liability partnership registered under the Limited Liability Partnership Act, 2008 and having its registered office at A wing 905 and 906, Marathon Innova, Ganpatrao Kadam Marg, Opp- Peninsula Corporate Park, Lower Parel, Mumbai 400013;
73. "Lead Investor 2" shall mean **PIPER SERICA ADVISORS PRIVATE LIMITED**, a company incorporated under the laws of India and having its registered office at A wing 905 and 906, Marathon Innova, Ganpatrao Kadam Marg, Opp-Peninsula Corporate Park, Lower Parel, Mumbai 400013;
74. "Lead Investor Director" shall have the meaning assigned to it under Article 90.1.4;
75. "Lead Investor Observer" shall have the meaning assigned to it under Article 90.1.3;
76. "Lead Investor Shares" shall mean subscription of Series Seed CCPS and Piper Equity Shares;
77. "Liquidation Event" shall be deemed to include the following:
- (i) commencement of any proceedings for the voluntary winding up of the Company in accordance with the Act or any other applicable statute/ law or the passing of an order by any court appointing a provisional liquidator or administrator in any other proceeding seeking the winding up of the Company; or
 - (ii) the consummation of a consolidation, merger, reorganization, amalgamation, or other similar transaction (whether in one or a series of transactions) of the Company or of its subsidiaries; resulting in its Shareholders (immediately prior to such transactions)



collectively retaining less than a majority of the voting power of the Company or the surviving entity immediately following such transaction after giving effect to any conversion, exercise or exchange of Equity Securities convertible into or exercisable or exchangeable for such voting securities; or

- (iii) sale, lease, transfer or otherwise disposing of all or more than 50% (fifty percent) of the assets of the Company (including but not limited to any Business related IP Rights of the Company) or of its subsidiaries, whether by way of slump sale, demerger or otherwise;

- 78. **"Liquidation Proceeds"** shall have the meaning assigned to it under Article 99.1;
- 79. **"Liquidation Preference Amount"** shall have the meaning assigned to it under Article 99.1.1;
- 80. **"Locked Shares"** shall have the meaning assigned to it under Article 94.1.2;
- 81. **"Lock-in Period"** shall have the meaning assigned to it under Article 94.1.2;
- 82. **"Material Breach"** shall mean, unless waived by the Lead Investor 1:
 - (i) any dispute arising between the Founders, which leads to a Material Adverse Effect on the Business of the Company;
 - (ii) taking any action with respect to any Reserved Matters or undertaking any amendment to the Articles without consent of the Lead Investor 1 where such vote is mandated by the provisions of Article 90.7 (*Reserved Matters*);
 - (iii) the failure on the part of the Founders to honour or give effect to the liquidation preference right of the Lead Investors under the SHA;
 - (iv) termination of employment of any of the Founders with the Company for Cause or termination of employment of any of the Founders on account of voluntary resignation within a period of 2 (two) years from the Effective Date, without the approval of Board, provided that resignation due to reduction in the remuneration of the Founders and due to no fault of the concerned Founder shall not constitute Material Breach. In the event, the remuneration of the Founders is reduced due to cash flow issues and still the Founders resign without the approval of the Board, then such resignation will be treated as Bad Leaver and will be considered as an event of Material Breach; or
 - (v) Non-performance or material breach (unless such obligations are waived by the relevant Investor) by the Company or the Founders under Transaction Documents, which breach is not remedied within a period of 30 (thirty) days of receipt of a default notice from the Lead Investor 1;
- 83. **"Material Adverse Effect"** shall mean any significant change or effect that would have (or could reasonably be expected to have) a materially adverse financial impact to (a) the business, operations, assets, condition (financial or otherwise), operating results of the Company, or (b) the ability of the Parties to consummate the transactions contemplated herein, or (c) the validity, legality or enforceability of the rights or remedies of Lead Investors under the Shareholders Agreement;



84. **"Memorandum of Association"** or **"Memorandum"** shall mean the memorandum of association of the Company, as amended from time to time;
85. **"MIS"** shall have the meaning assigned to it under Article 101.1(ii)(c);
86. **"New Buyer/s"** shall have the meaning assigned to it under Article 93.3.1;
87. **"Notice of Cure"** shall have the meaning assigned to it under Article 104.1;
88. **"Offered Terms"** shall have the meaning assigned to it under Article 97.1;
89. **"Offeree"** shall have the meaning assigned to it under Article 98.1;
90. **"Other Shareholders"** shall mean the persons whose name, address and particulars are set out in SCHEDULE I of the SHA;
91. **"Partner Investor"** shall have the meaning assigned to it under Article 97.5;
92. **"Person"** shall mean any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, union, association, government or any agency or political subdivision thereof or any other entity that may be treated as a person under Law;
93. **"Piper Equity Shares"** shall have the meaning assigned to it under Recital C of the SHA.;
94. **"Pre-Emptive Right"** shall have the meaning assigned to it under Article 97.1;
95. **"Pre-Emptive Right Holder"** shall have the meaning assigned to it under Article 97.1;
96. **"Preference Shares"** shall mean fully paid-up preference shares of the Company issued by the Company from time to time, including Series Seed CCPS;
97. **"Proposed Issuance"** shall have the meaning assigned to it under Article 97.1;
98. **"Purchaser"** shall have the meaning assigned to it under Article 94.2.1;
99. **"QIPO"** shall have the meaning assigned to it under Article 93.1.1;
100. **"Related Party"** shall have the meaning as provided in the Act;
101. **"Restated Articles"** means the restated and amended Articles of the Company, which shall be in conformity with the Shareholders Agreement and subject to Law;
102. **"Right of First Refusal"** shall have the meaning assigned to it under Article 94.2.4;



103. "ROFR Acceptance Notice" shall have the meaning assigned to it under Article 94.2.4;
104. "ROFR Exercise Period" shall have the meaning assigned to it under Article 94.2.4;
105. "ROFR Holder" shall have the meaning assigned to it under Article 94.2.1;
106. "ROFR Notice" shall have the meaning assigned to it under Article 94.2.3;
107. "ROFR Refused Sale Shares" shall have the meaning assigned to it under Article 94.2.6;
108. "Sale Notice" shall have the meaning assigned to it under Article 93.1.2;
109. "Sale Price" shall have the meaning assigned to it under Article 94.2.3;
110. "Sale Shares" shall have the meaning assigned to it under Article 94.2.1;
111. "Series Seed CCPS" shall mean compulsorily convertible preference shares having issue price of INR 21,628 (Indian Rupees Twenty One Thousand Six Hundred and Twenty Eight only) having a premium of INR 21,618 (Indian Rupees Twenty One Thousand Six Hundred And Eighteen only) and a face value of INR 10 (Indian Rupees Ten only) each, having terms set forth in **SCHEDULE I**;
112. "Selling Founder" shall have the meaning assigned to it under Article 94.3.1;
113. "Selling Investor" shall have the meaning assigned to it under Article 94.3.3;
114. "Selling Shareholder/s" shall have the meaning assigned to it under Article 94.2.1;
115. "Share/s" shall mean Equity Shares (including Acquired Shares) and/ or Preference Shares of the Company;
116. "Share Capital" shall mean the total paid up share capital of the Company determined on a Fully Diluted Basis;
117. "Shareholders" shall mean the equity, preference shareholders and compulsorily convertible debentures holder (on conversion into Shares), from time to time, of the Company;
118. "Shareholders Agreement/SHA/Agreement" shall mean this Shareholders Agreement dated April 10, 2026, executed by and between the Company, Founder 1, Founder 2, Lead Investor 1, Lead Investor 2 and Other Shareholders;
119. "SSA" shall mean the share subscription agreement of even date executed by the Company, the Founders and the Lead Investor 1;
120. "Strategic Sale" means a transaction that enables the Lead Investors to fully dispose of all its then existing shareholding in the Company (held either directly or indirectly);



121. **"Subsidiary"** with respect to any Person shall have the meaning ascribed to the term under the Act;
122. **"Vested Shares"** shall have the meaning assigned to it under Article 94.1.4;
123. **"Tag Along Notice"** shall have the meaning assigned to it under Article 94.3.4;
124. **"Tag Along Right"** shall have the meaning assigned to it under Article 94.3.4;
125. **"Tag Along Shares"** shall have the meaning assigned to it under Article 94.3.4;
126. **"Tag Holder"** shall have the meaning assigned to it under Article 94.3.4;
127. **"Tax", "Taxes" or "Taxation"** any and all form of direct and indirect taxes with reference to income, profits, gains, net wealth, asset values, turnover, gross receipts including but not limited to all duties, excise, customs, service tax, value added tax, goods and sales tax, charges, fees, levies or other similar assessments by or payable to a governmental authority (including any interest, fines, penalties, assessments, or additions to Tax);
128. **"Transaction Documents"** mean the Shareholders Agreement, the SSA, the Share Purchase Agreement, Restated Articles, the Employment Agreement and all other agreements and documents that may be executed by the Parties pursuant hereto and thereto;
129. **"Tranche I Closing"** shall have the meaning assigned to it in the SSA;
130. **"Tranche II Closing"** shall have the meaning assigned to it in the SSA;
131. **"Tranche I Closing Date"** shall have the meaning assigned to it in the SSA;
132. **"Tranche II Closing Date"** shall have the meaning assigned to it in the SSA;
133. **"Transfer"** (including with correlative meaning, the terms "Transferred by" and "Transferability") shall mean any transfer, sale, assignment, pledge, hypothecation, creation of any security interest in or lien on, placing in trust (voting or otherwise), exchange, gift or transfer by operation of Law or in any other way making anything subject to any Encumbrance or disposing of, whether or not voluntarily.

The capitalized terms not defined herein shall have the meanings ascribed thereto in the Shareholders' Agreement.

90. CORPORATE GOVERNANCE

90.1. Board of Directors

Unless otherwise unanimously approved by the Board, the Board shall comprise of not more than



3 (three) Directors. The composition of the Board shall be as follows:

90.1.1. **Founder Directors** – The Founders shall have the right to nominate and appoint 2 (two) Directors to the Board of the Company (each a “**Founder Director**”, and collectively the “**Founder Directors**”). It is hereby clarified that at all the times the Founder shall hold the Founder Director’s position, unless otherwise agreed to in writing by the Lead Investor

90.1.2. The directorship of a Founder Director shall stand automatically vacated from the Board, upon any of the following events:

- a. If such Founder ceases to be in the employment of the Company; or
- b. If such Founder ceases to hold all the Equity Securities held by them in the Company; or
- c. Upon occurrence of Material Breach as stipulated in Article 104 (*Material Breach*);

Upon occurrence of any of the above with respect to a Founder Director and if so required by the Lead Investor 1, such Founder Director shall be deemed to have automatically vacated his office, and the Company shall undertake necessary actions in relation to such vacancy. Any replacement in place of such Founder Director shall be appointed by the Board with consent of Lead Investor 1.

90.1.3. The Lead Investor 1 shall have the right to nominate and appoint 1 (One) Observer on the Board (“**Lead Investor Observer**”) of the Company and all committees of the Board thereof (whether in person or through telephonic or other medium) in a non-voting observer capacity. The Company shall provide to the Lead Investor Observer, concurrently with the members of the Board and in the same manner, notice of such meeting and a copy of all materials provided to such members.

90.1.4. The Lead Investor 1 shall at its sole and absolute discretion have the right to nominate jointly 1 (one) Director (“**Lead Investor Director**”) to the Board of the Company. The Company shall immediately and no later than 7 (seven) Business Days following receipt of a notice from the Lead Investor 1 in this regard, complete all corporate and regulatory formalities regarding such appointment, removal or substitution.

90.2. **Committees of the Board**

90.2.1. The Board may set up such committees as the Board may deem fit from time to time. Lead Investor 1 shall be entitled to nominate 1 (one) member in each such committee who shall be the Investor Nominee as applicable.

90.2.2. The Company shall provide standard directors’ and officers’ liability protection insurance, within 15 (fifteen) days from the appointment of the Lead Investor Director, of a coverage



and from a service provider satisfactory to Lead Investor 1 which shall remain in force till Lead Investors holds any Securities in the Company. The directors' liability insurance shall cover the Lead Investor Director (as applicable) and all other Directors of the Company, where permitted, from such risks as may be mutually agreed between Lead Investor 1, the Company and Founders.

- 90.2.3. Subject to Applicable Law, once the Lead Investor Director is appointed, the Company shall indemnify the Lead Investor Director, to the fullest extent permitted by Law, against any wrongful, negligent act, omission or conduct (including, contravention of any Law) or an act which is *ultra vires* the Charter Documents of the Company, of or by the Company, its officials, employees or representatives, or the Shareholders (other than the Lead Investors, including its Affiliates and any Person who has become a Shareholder consequent to acquisition of Equity Securities from the Lead Investors or its Affiliates), as a result of which, the Lead Investor Director is made party to, or otherwise incur any direct and/ or actual Claims including a direct and/ or actual loss (including attorney's fees and other out of pocket expenses, (if any) which are reasonable) pursuant to or in connection with, any action, suit, claim or proceeding arising out of or relating to any such act, omission or conduct.
- 90.2.4. Once nominated, the Lead Investor Director shall not be liable to retire by rotation and shall hold membership of each committee constituted by and under the Board.
- 90.2.5. The Investor Nominees, being the designated representative of the Lead Investor 1 as specified above for the purposes of acting on their behalf, shall be acting as the agents of the Lead Investor 1 in the performance of the Agreement and shall not be deemed or construed to be the employees or agents of the Lead Investor 1 for any other purpose whatsoever. The Investor Nominee shall be the primary means for communication and all other interactions that are required under the SHA with respect to the Lead Investor 1.
- 90.2.6. Subject to the provisions of the Act, the Board shall have the right to appoint an alternate director to act for the Lead Investor Director during the absence of such Lead Investor Director, for a period of not less than 3 (three) months from India and such appointment / determination and removal shall be with the consent of and by notice in writing to the Company signed by the Lead Investor 1.
- 90.2.7. If a casual vacancy caused in the office of the Lead Investor Director by reason of his resignation, death and removal or otherwise, the Board shall, upon receipt of a notice, in writing, from the Lead Investor 1, fill in any such vacancy and shall appoint only such Person as is notified in writing by the Lead Investor 1. All communications for the replacement of Lead Investor Director shall be made by the Lead Investor 1 in writing.
- 90.2.8. The Founders and the Company expressly agree and undertake that the Lead Investor 1 Director, once appointed, shall not be deemed to be or considered or identified as the "responsible officer", the "authorized officer", the "compliance officer", the "officer having knowledge", "officer in charge/default" of the Company, as an "occupier" of any premises used by the Company, or an "employer" of any of the employees of the Company, and shall accordingly not be liable for any default or failure of the Company in



complying with the provisions of any Applicable Laws. Further, the Founders and the Company undertake to ensure that the other Directors or suitable persons are nominated as the "responsible officer", the "authorized officer", the "compliance officer", the "officer having knowledge", "officer in charge/default" of the Company, as an "occupier" of any premises used by the Company, or an "employer" of any of the employees of the Company, for the purposes of various statutory and regulatory compliances and Applicable Laws.

90.2.9. The Parties acknowledge and confirm that the Lead Investor Director, once appointed, shall be a non-executive Director. They further confirm that the Lead Investor Director and / or Lead Investor Observer shall not be in charge of the day-to-day management of the Company. The Founder Directors are responsible for the management and good governance of the Company including compliance with all applicable corporate governance norms prescribed under the Act. The presence of the Lead Investor Director on the Board does not limit the duties of the Founder Directors as prescribed by the Act, applicable regulations and common law.

90.2.10. All decisions or resolutions by the Directors may be made in the meeting of the Board in accordance with Article 90 (Corporate Governance) and the Charter Documents or whenever permitted by the Act by circulation in accordance with the Charter Documents. Each Director shall be entitled to exercise 1 (one) vote. Except as may be required under the Act and subject to the Reserved Matters, all decisions are required to be taken by a simple majority at a Board meeting.

90.3. Board Meetings

90.3.1. The Board shall meet once every quarter in accordance with the Act.

90.3.2. The chairman of the Board Meeting shall be appointed by the Board at the beginning of each meeting from amongst the members present in such Board Meeting. The chairman of the Board Meeting shall not have a second and/or casting vote.

90.3.3. At least 7 (seven) days prior written notice shall be given to each of the Directors and Lead Investor Observer of any meeting of the Board along with the agenda of the meeting and the supporting papers. A meeting of the Board may be held at shorter notice with the written consent (which may be signified by letter or e-mail with receipt acknowledged) of each of the Board members, including the Lead Investor Director, once appointed.

90.3.4. All Board Meetings shall be held in the city where the registered office of the Company is located or such other place as may be agreed upon by the Lead Investor Director or Lead Investor Observer, as the case may be. Any sitting fees may be paid at the sole option of the Company to the Directors. However, the Company shall reimburse reasonable expenses pertaining to travel for a Board Meeting incurred by a Lead Investor Director and/or the Lead Investor Observer, as the case maybe.

90.4. Quorum



Subject to applicable Law, the quorum for all meetings of the Board shall be the presence of Lead Investor Director, once appointed and at least 1 (one) Founder Director, unless the presence of Lead Investor Director is waived by the Lead Investor 1. Where the Lead Investor Director has not been appointed, then in such case presence of both the Founder Director(s), shall be mandatorily required to constitute a valid quorum. In addition to the foregoing, Lead Investor Observer may be present for all Board meetings, however, the presence of the Lead Investor Observer shall not be required for the purpose of forming quorum. If the quorum is not present within 1 (one) hour from the time appointed for the meeting, the meeting shall stand adjourned to the same place and time on the 7th (seventh) day following the date on which the meeting was scheduled to be held (the "**Adjourned Board Meeting**"), it being understood that the agenda for such Adjourned Board Meeting shall be the same as the agenda for the original meeting. If such a day is not a Business Day, the meeting shall be held on the next Business Day. If at the Adjourned Board Meeting also a valid quorum as set out above, is not present, the Directors present for such Adjourned Board Meeting shall, subject to them forming quorum under Applicable Law, pass a resolution on all matters except in respect of the Reserved Matters wherein the presence of the Lead Investor Director shall not be required if the appropriate consent of the Lead Investor 1 has been obtained as per Article 90.7 (*Reserved Matters*). A Reserved Matter shall be transacted only in accordance with Article 90.7 (*Reserved Matters*).

90.5. Passing of Resolutions and Voting

90.5.1. A decision shall be said to have been made and a resolution passed at a meeting of the Board only if passed at a validly constituted meeting, including with appropriate quorum in accordance with the Restated Articles and SHA, and such decisions/resolutions are, subject to Article 90.7 (*Reserved Matters*), approved by a majority of the Directors, which, unless otherwise mandated by Applicable Law, shall mean approval by a majority of the Directors present and voting at such meeting of the Board. Provided that where a matter is a Reserved Matter, such matter shall be transacted only in accordance with Article 90.7 (*Reserved Matters*); and

90.5.2. Subject to Applicable Law, Directors and/ or observers may participate in meetings of the Board through video or telephonic conference.

90.6. Circular Resolutions

A written resolution circulated to all Directors, whether in India or overseas and signed by a majority of them as approved shall (subject to compliance with the relevant requirements of the Act) be as valid and effective as a resolution duly passed at a meeting of the Board, called and held in accordance with the SHA and the Restated Articles (provided that such written resolution has been circulated in draft form, together with the relevant papers, if any, to all the Directors). All draft circular resolutions and relevant papers shall be also sent to the Lead Investor Observer. Provided that where a matter is a Reserved Matter, such matter shall be transacted only in accordance with Article 90.7 (*Reserved Matters*).



90.7. Reserved Matters

Notwithstanding anything contained in the SHA, the Company shall not pass a resolution or undertake any decision at a meeting of the Board or the Shareholders or by circular resolution or otherwise, pertaining to Reserved Matters as contained in **SCHEDULE II** without obtaining the prior written consent of the Lead Investor 1. In the event any decision and/or resolution relating to a Reserved Matter is placed or discussed at a Board or Shareholders' meeting without obtaining the prior written consent of the Lead Investor 1 in the manner as set out in this Article 90.7, then (a) such decision or resolution shall not be valid or binding on any Person including the Company; and (b) the Company shall not take any action pursuant to such decision or resolution unless consent of the Lead Investor 1 is obtained for the same.

91. **GENERAL MEETINGS**

91.1. General Meetings

An annual General Meeting of the Shareholders of the Company shall be held as per the provisions of the Act. Subject to the foregoing, the Board, on its own or at the request of the Shareholders, may convene a General Meeting, whenever they deem appropriate.

91.2. Notices for General Meetings

At least 21 (twenty one) days' prior written notice of every General Meeting of Shareholders shall be given to all Shareholders whose names appear on the register of members of the Company, the auditor or auditors of the Company and every Director of the Company. A meeting of the Shareholders may be called by giving shorter notice with the written consent of the minimum number of Shareholders as provided by the Act, but always including the prior written consent of the Lead Investor 1. The notice shall specify the place, date and time of the meeting. Every notice convening a meeting of the Shareholders shall set forth in full and sufficient detail the business to be transacted thereat, and no business shall be transacted at such meeting unless the same has been stated in the notice convening the meeting. The draft resolutions to be considered at the Shareholders' meetings must be furnished to all the Shareholders at least 10 (ten) days prior to the date of the proposed Shareholders' meeting. In case the resolution is with respect to Reserved Matters then the Company shall circulate the same, only after receiving the written consent from the Lead Investor 1.

91.3. Quorum for General Meetings

91.3.1. To constitute a quorum for a General Meeting, the authorized representative of the Lead Investor 1 (unless waived in writing by the Lead Investor 1) and at least 1 (one) Founder (unless waived in writing by the Founders) shall be present at the commencement and throughout the duration of the meeting; and



91.3.2. If such a quorum is not present within 1 (one) hour from the time appointed for the meeting, the meeting shall stand adjourned to the same place and time on the 7th (seventh) day following the date on which the meeting was scheduled to be held (the “**Adjourned General Meeting**”), it being understood that the agenda for such first Adjourned General Meeting shall be the same as the agenda for the original meeting. If at the Adjourned General Meeting also a valid quorum as set out above, is not present, the members present for such Adjourned General Meeting shall, subject to them forming quorum under Applicable Law, pass a resolution on all matters except in respect of the Reserved Matters wherein the presence of the Lead Investor 1 representative shall not be required if the appropriate consent of the Lead Investor 1 has been obtained as per Article 90.7 (*Reserved Matters*). A Reserved Matter shall be transacted only in accordance with Article 90.7 (*Reserved Matters*).

91.4. Chairman

91.4.1. The chairman of the meeting shall be appointed by the members attending the meeting prior to conducting any affairs of the Company during the meeting. The chairman of the General Meeting shall not have a second and/or casting vote.

91.5. Passing of Resolution and Voting

91.5.1. All resolutions at a General Meeting shall be voted upon by way of a poll and shall be decided by a simple majority or a special majority as required under the Act except Reserved Matters which shall be passed only in accordance with Article 90.7 (*Reserved Matters*). If no specific threshold has been prescribed under Applicable Law for any matter (except matters listed in **SCHEDULE II**) that is placed at a General Meeting in accordance with the provisions of the SHA or the Restated Articles, a resolution shall be deemed to have been passed if such resolution meets the criteria for passing of ‘ordinary resolutions’ prescribed under the Act.

91.5.2. The Shareholders may participate and vote in General Meetings by video conferencing or any other means of contemporaneous communication, in the manner permitted under Law.

91.6. Proxies

91.6.1. Any Shareholder of the Company may appoint (in writing) another Person as its proxy (and in case of a corporate shareholder, an authorized representative) to attend a meeting and vote there on such Shareholder’s behalf, provided that such proxy shall not be a Competitor.

92. **COVENANTS**



92.1. Conduct of Business

The Company shall, and the Founders shall cause the Company, to comply with Applicable Laws material in the conduct of its Business and affairs and shall conduct itself and operate in accordance with good industry practices, in accordance with Applicable Laws, and any approvals received in terms thereof.

92.2. Borrowings by the Company

The financing requirements of the Company shall be met in accordance with the Business Plan, subject to the limitations set out in the SHA. In the event of any future borrowings or indebtedness, the Lead Investors shall not be required to provide any guarantees/collateral or any other security. The Lead Investors shall not be required to pledge its Equity Securities or provide any guarantee or indemnity or any other support or a negative lien to any third Person, including without limitation the lenders of the Company. The Founders shall provide all support including without limitation guarantees or any other security in respect of the borrowings and indebtedness by the Company subject to the provisions of the SHA.

92.3. Business of the Company

The business of the Company shall be restricted to the Business (as defined in the SHA) and shall be always conducted in compliance with Applicable Law. The Founders shall ensure that the Company procures and has in place all necessary permits, licenses, consents, approvals, financing and guarantees necessary for the Business and operations of the Company. The Company and the Founders agree and undertake the Business such that all investments in the Company are under the automatic route and do not require the prior approval of any Governmental Authorities under the exchange control laws of India.

93. **EXIT**

93.1. The Company shall, subject to Applicable Law, provide an exit to the Lead Investors, at Fair Market Value, on or before the 5th (fifth) anniversary of the Tranche I Closing Date, or any extended period as may be approved in writing by the Lead Investor 1 ("**Exit Period**"), by way of (a) Qualified Initial Public Offering; or (b) Strategic Sale; or (c) any other manner as may be approved by the Lead Investor 1.

93.1.1. Qualified Initial Public Offering. The Company shall consummate a Qualified Initial



Public Offering ("QIPO") involving all of the Equity Securities/ Shares held by the Founders and the other Shareholders of the Company in the following manner:

- a. The Company shall consummate, and the Founders shall exercise all rights available to them in relation to the Company, including their voting rights, so that the Company consummates a QIPO on or prior to the Exit Period. The Board shall, with the consent of Lead Investor 1 and, in consultation with a firm of independent merchant bankers, and subject to such statutory guidelines as may be in force, decide on:
 - i. The method of listing the Shares i.e. either: (i) through a public issue of fresh Shares; or (ii) through an offer of existing Equity Securities/ Shares of all the Shareholders (which would at all times include all Shares held by the Lead Investors); or a combination of (i) and (ii);
 - ii. The size, price and other terms and conditions of the QIPO;
 - iii. The timing of the QIPO;
 - iv. The stock exchanges on which the Equity Securities/ Shares are to be listed; and
 - v. Any other matters related to the QIPO.
- b. For the purpose of a QIPO, to the extent permissible by Applicable Law, the Shares held by the Lead Investors shall not be subjected to a lock-in or other restriction on Transfer as applicable to Founders' contribution under the guidelines of Securities Exchange Board of India or any other statutory or regulatory authority as applicable from time to time. The Company undertakes that under no circumstances shall the Lead Investors be named or deemed as promoter/Founder of the Company in any document in relation to the listing of the Company and at no time the Shares of the Lead Investors shall be treated as promoters' shares.
- c. The Company and Founders agree and acknowledge that if a QIPO is made in India, and the Company is required to offer a minimum number of Equity Shares, as required under Applicable Law, existing from time to time; the Company shall in order to comply with such requirements, be empowered to consummate the QIPO in any manner or a combination thereof, including (a) issuance of new Equity Shares; (b) issuance of new Equity Shares and the divestiture of all or a part of the shareholdings of the Founders; or (c) solely through the divestment of all or a part of the shareholdings of the Founders. Notwithstanding the foregoing, the Lead Investors has the right, but not the obligation, to offer all or some of their Equity Securities/ Shares in any such public offering of the Company on the same pricing terms as the primary Equity Securities/ Shares offered to the public by the Company, provided, that, the Lead Investors shall not be required to provide any representations, warranties or covenants, other than those given by a Financial



Investor in relation to title and authority, in the underwriting or purchase agreement for the offering. In addition, the Founders shall contribute such number of Equity Securities/ Shares as may be required under Applicable Laws, to enable the QIPO.

- d. If a QIPO is to be made and if the minimum paid-up equity Share Capital required at the relevant time under Applicable Laws for the purpose of listing the Company's Shares is more than the paid up Share Capital of the Company (inclusive of any additional Shares to be issued through the QIPO), then, the Company shall, subject to Lead Investor 1 consent, issue such bonus Shares as are required to meet such listing preconditions.
- e. The Founders and the Company shall take all such steps, and extend all such co-operation to each other and the lead managers, underwriters and others as may be required for the purpose of expeditiously making and completing the QIPO, including by exercise of all their voting rights and powers and the provision of any customary representations, warranties and/or indemnities in this regard. The Founders and the Company shall obtain all such approvals, including Government Approvals, as may be required for the purpose of the QIPO.
- f. The Company shall and the Founders shall, jointly and severally, indemnify the Lead Investors to the maximum extent permitted under Applicable Laws, against any loss, Claim and Damage arising out of or relating to any misstatements and omissions of the Company in any registration statement, offering document or preliminary offering document, and like violations of applicable securities laws by the Company or any other error or omission of the Company in connection with a public offering hereunder, other than with respect to information provided by the Lead Investors in writing expressly for inclusion therein.
- g. The Lead Investors shall also be entitled to determine the timing of, mode of, market conditions, and all other matters relating to any offering.
- h. The Company shall bear all fees, costs and expenses of such QIPO and for any disinvestments of Lead Investors, including without limitation all registration, filing, qualification and similar fees and all printers, attorneys' and accounting fees and disbursements. In the event of a QIPO, if required by Law, the Lead Investors shall bear their proportionate share of cost.
- i. **Re-instatement of Rights:** In the event the Equity Securities/ Shares are not listed within 6 (six) months of filing the draft red herring prospectus in connection with an QIPO, then the Company and the Founders shall take all action to ensure that the Company undertakes all necessary actions and does all such things as may be required to ensure that the Lead Investors are placed in the same position and possess the same preferential and all other rights it had the benefit of immediately prior to the amendment of the Charter Documents of the Company in connection with the QIPO, including but not limited to: (a) reclassification of the securities held by the Lead Investors; and/or (b) conversion of the Company from a public limited to a private limited company.



93.1.2. Strategic Sale

- a. In the event that the Company and the Founders intend to undertake a Strategic Sale within the Exit Period, they shall deliver a notice to Lead Investor 1 ("**Sale Notice**"), setting out the following:
 - i. The exact nature of the transaction proposed;
 - ii. The identity of the bonafide third party buyer with which the Company proposes to conduct the Strategic Sale and from whom the Company has received an offer;
 - iii. The binding terms of the Strategic Sale, including the price at which the Shares held by the Lead Investors, shall be sold,
 - iv. The time for completion of the Strategic Sale as best estimated by the Company and the Founders; and
 - v. Any other material terms of the proposed Strategic Sale.
- b. In the event that the Lead Investor 1 consents to a Strategic Sale, all Other Shareholders (if any) shall indicate the number of Shares that such Other Shareholder propose to offer in such Strategic Sale.
- c. The Company and the Founders shall ensure that the Strategic Sale shall be completed prior to the expiry of the Exit Period or any other later period as agreed by the Lead Investor 1 and shall be in respect of all Shares held by the Lead Investors or such number of Shares held by the Lead Investors as the Lead Investors may decide in accordance with (ii) above.
- d. All costs and expenses relating to the Strategic Sale shall be borne entirely by the Company. The Lead Investors shall not be required to provide any representations or warranties or guarantees or indemnities, or be subject to any restrictive covenants pursuant to, or be required to bear any costs and expenses related to a Strategic Sale.

93.1.3. Any Other Manner. The Company may also provide the Lead Investors with an exit in respect of all their Shares, apart from under Articles 93.1.1 and 93.1.2 above, in any other manner as may be acceptable to the Lead Investor 1.

93.2. Buy Back

93.2.1. In the event no exit has been provided to Lead Investors upon the expiry of the Exit Period, then Lead Investor 1 shall be entitled (solely) to issue a notice ("**Buy Back Notice**") delivered to the Company, to require an exit by way of buy back of the Shares held by the Lead Investors ("**Buy Back Option**") subject to Applicable Laws. The Lead Investors shall have a right to participate in buy back for up to all of their Shareholding in



the Company. Such buy back can be undertaken through one or more successive buy back offers of all Shares held by the Lead Investors valued at Fair Market Value ("**Buy Back Amount**"). The Company shall complete the buy back within 3 (Three) months from the date of receipt of the Buy Back Notice subject to the provisions of Applicable Law.

- 93.2.2. In the event the Company does not have sufficient funds, profits, reserves or retained earnings or is otherwise unable for any reason to buy back all of the Shares held by the Lead Investors at the Buy Back Amount, the Company shall buy back the maximum number of Shares from the Lead Investors, in proportion to their shareholding in the Company, allowed under the Applicable Laws, at the Buy Back Amount. The Lead Investors can either (a) avail the buy-back rights for the remaining Shares held by the Lead Investors soon upon the Company being allowed under Law to undertake such buy-back at the Buy Back Amount, until such time that the Lead Investors receives a complete exit (whether through multiple consecutive buy-backs or in combination with any other exit rights available to the Investor); and/or (b) the Lead Investors may exercise the rights under Article 93.3 (*Drag Along Right*). It is clarified that, the rights of the Lead Investors shall not fall-away by reason of falling below any thresholds set out in the SHA.

93.3. **Drag Along Right**

- 93.3.1. Without prejudice to any other rights of the Lead Investors, if the Company has failed to provide an exit to the Lead Investors in the manner as set forth under Article 93.1, in addition to Article 93.2 (*Buy Back*), the Lead Investors ("**Dragging Investor**"), shall have the right ("**Drag Along Right**") to compel the Founders and the Other Shareholders ("**Dragged Shareholders**"), to, along with the Dragging Investor, transfer part or all of their Shares in the Company ("**Drag Along Shares**") to one or more third parties (including Competitors) identified by the Dragging Investor ("**New Buyer/s**"), at the price and on the terms and conditions as may be acceptable to the Dragging Investor ("**Drag Sale**").
- 93.3.2. It is clarified that the provisions of Article 94 (*Founder Share Transfers and Other Shareholders Share Transfer*) below shall not be applicable to any Transfer of Shares pursuant to this Article 93.3 (*Drag Along Right*).
- 93.3.3. The Drag Along Right shall be exercised by the issuance of a written notice by the Dragging Investor to the Dragged Shareholders and the Company (along with a copy to other Shareholders) containing the terms of Drag Sale (the "**Drag Along Notice**"). The Drag Along Notice shall contain: (a) the price per Share offered by the New Buyer/s; (b) the identity of the New Buyer/s; (c) the number of Drag Along Shares to be sold by the Dragged Shareholders; and (d) any other material terms and conditions of the Drag Along Sale.
- 93.3.4. Upon receipt of the Drag Along Notice from the Dragging Investor, the Dragged Shareholders shall be bound and obligated to Transfer to the New Buyer/s all of the Drag Along Shares then held by such Dragged Shareholder on the terms and conditions



mentioned in the Drag Along Notice, subject to Article 99 (*Liquidation Preference*). The Company and the Founders agree and acknowledge that the Dragging Investor shall not be required to provide any warranties (other than customary title warranties) or indemnities in any such Drag Along Sale, and that all required warranties and indemnities relating to the operations of the business and/ or the Company shall be provided by the Company and/ or the Founders.

93.3.5. The Parties hereby covenant that, upon exercise of its Drag Along Right by the Dragging Investor in terms of this Article 93.3 (*Drag Along Right*), they shall perform any or all actions as may be necessary to give effect to such rights of the Dragging Investor, including execution of any documents and passing of all necessary resolutions and obtaining all necessary consents.

93.3.6. Within 30 (thirty) days from the date of issuance of the Drag Along Notice, the Dragging Investor shall notify the Dragged Shareholders and the Company of the date on which the Drag Sale will be consummated. The Dragged Shareholders shall effect their participation in such Drag Sale herein by delivery to the New Buyer/s, of one or more instruments or certificates, properly endorsed for Transfer, representing the Shares held by them together with the relevant securities transfer forms and any other required documents. At the time of consummation of the Drag Sale, New Buyer/s shall remit, subject to the rights of the Dragging Investor under Article 99 (*Liquidation Preference*), directly to the Dragging Investor, the Dragged Shareholders, that portion of the sale proceeds to which each such Person is entitled.

93.3.7. All costs, fees and expenses in relation to the Drag Sale (including reasonable investment bankers' fees, statutory fees) shall be borne by the Company or the proposed New Buyer(s).

94. FOUNDER SHARE TRANSFERS AND OTHER SHAREHOLDERS SHARE TRANSFER

94.1. Founders Lock-in

94.1.1. Except as mentioned in this Article 94.1 the Founders undertake that they shall not in any manner, directly or indirectly, transfer the Shares held by them in the Company, without the prior written consent of the Lead Investor 1. It is further agreed that till the time Lead Investors hold any Shares in the Company, the Founders' Shares shall be subjected to the Article 94.2 (*Right of First Refusal on Founder Share Transfer and Other Shareholders Share Transfer*) and Article 94.3 (*Tag Along Right*).

94.1.2. Subject to Article 94.2 (*Right of First Refusal on Founders and Other Shareholders Share Transfer*) or 94.3 (*Tag Along Right*), and release of the Liquidity Shares (*defined below*) on the Tranche I Closing Date, 95% (ninety-five percent) of the Equity Shares held by each of the Founders ("**Locked Shares**") shall be unlocked and become Vested Shares, subject to other terms of the Shareholders Agreement, such that 25% (twenty five



percent) of the Locked Shares held by each of the Founder shall be unlocked on the 1 (one) year anniversary of the Tranche I Closing Date ("First Unlock Date"). The remaining Locked Shares shall be released in equal monthly instalments starting from the 1 (one) year anniversary of the Tranche I Closing Date such that all the Locked Shares held by the Founders shall be unlocked upon the expiry of 4 (four) years from the First Unlôck Date ("Lock-in Period"). The Transferable Shares and the Locked Shares unlocked and vested to the Founders shall be referred to as "Vested Shares".

94.1.3. Notwithstanding anything contained in this Article 94.1, each of the Founders shall be entitled, without the prior written consent of the Lead Investor 1, to Transfer, up to 10% (ten per cent) of their respective Released Shares in the Company, solely for the purposes of liquidity ("Liquidity Shares"). It is hereby clarified that any Transfer of Liquidity Shares made in accordance with this Article shall trigger the provisions of Article 94.2 (Right of First Refusal on Founders and Other Shareholders Share Transfer) and Article 94.3 (Tag along right).

94.1.4. The Founders shall be entitled to transfer their entire shareholding without requiring the prior written consent of the Lead Investor 1 provided a 15 (fifteen) days' written notice is provided to the Lead Investor 1, in furtherance of an estate planning or a succession planning exercise, provided that such shares are only transferred to permissible relative limits (under applicable tax laws) of the Founders or to an entity, that is Controlled by the Founders(s). The restrictions applicable to the shares of the Founders shall continue to remain in full force and effect as detailed in the Shareholders Agreement, by the execution of a deed of adherence. It is hereby clarified that any Transfer made in accordance with this Article shall not trigger the provisions of Article 94.2 (Right of First Refusal on Founders and Other Shareholders Share Transfer) or Article 94.3 (Tag along right)

Founder	Number of Shares held	Vested Shares on the First Unlock Date	Vested Shares (per month) from the 1 st month till 47 th month from the First Unlock Date	Vested Shares on the 48 th month after the First Unlock Date
Founder 1	1235	293	18	34
Founder 2	7880	1872	117	115

94.1.5. In the event of the termination of the employment of the Founders in a Good Leaver situation, the Locked Shares of the leaving Founder, shall be placed into an ESOP trust to be made available as incentives for attracting other senior employees that may be required to take the Company forward. In the event, ESOP trust is unable to purchase the Locked Shares of the leaving Founder then the Lead Investor 1 shall have the right to purchase the Shares of the leaving Founder as on the date of termination, at a price per share equal to the higher of: (a) the Fair Market Value or (b) the par value of such Locked



Shares. It is hereby clarified that the leaving Founder shall have the full right, title and interest in all their Vested Shares, and the sale of such Shares shall be at the sole discretion of the leaving Founder subject to transfer restrictions as stated in the Shareholders Agreement including but not limited to restrictions laid down under Article 94.2 (Right of First Refusal on Founders and Other Shareholders Share Transfer) or Article 94.3 (Tag Along Right). Further, if the Shares of the leaving Founder is not acquired by the ESOP trust or the Lead Investor 1 also do not purchase their portion of the Locked Shares in a Good Leaver situation as mentioned above, then the said portion of the Locked Shares, as decided by the Lead Investor 1, shall be dealt with in a manner mutually acceptable to the Lead Investor 1 and the remaining Founder (if any).

- 94.1.6. In the event of the termination of the employment of the Founders in a Bad Leaver situation, the Vested Shares and the Locked Shares of the leaving Founder, shall be placed either, (a) into an ESOP trust to be made available as incentives for attracting other senior employees that may be required to take the Company forward, or (b) bought back by the Company or, (c) shall be dealt with in a manner mutually acceptable to the Lead Investor 1 and the remaining Founder (if any), at a price per share that is equal to the par value of such Locked and Vested Shares, or the lowest permissible price (whichever is higher).
- 94.1.7. Good Leaver situation: In the event that the Company terminates the Founder's employment without Cause, such an event shall be termed as a "**Good Leaver**" situation. A Founder's voluntary resignation may be considered a Good Leaver situation if the Lead Investor 1 provides a written consent to such an effect to the resigning Founder prior to the resignation of the Founder.
- 94.1.8. Bad Leaver situation: In the event that the Company terminates the Founder's employment for Cause or if the Founder voluntarily terminates its employment or voluntarily resigns from the employment (except the voluntary resignation provided in Article 94.1(vi)), such an event shall be termed as "**Bad Leaver**" situation. If the Lead Investor 1 does not provide a written consent to Founder prior to a Founder's voluntary resignation, such voluntary resignation of the Founders shall be considered as a Bad Leaver situation.
- 94.1.9. Notwithstanding the above, (a) the Founders shall be able to exercise voting rights and other rights only in relation to the Vested Shares (and not any Locked Shares) held by them in case of a Good Leaver situation; (b) the Founders shall not be able to exercise voting or other rights with respect to their Locked Shares and Vested Shares in the case of a Bad Leaver situation and such Founder shall, until the transfer of the Locked Shares and the Vested Shares as stated above abstain from exercising any voting rights on the Locked Shares and Vested Shares and/or participating in the Board meetings wherein the treatment of the Locked Shares and the Vested Shares is being discussed; and (c) all Shares held by the Founders shall become Vested Shares upon consummation of an IPO of the Company in accordance with the Shareholders Agreement, or upon a merger or an acquisition of the Company as contemplated during the merger or acquisition (subject to the Lead Investor 1's acceptance to the form and manner of such corporate action / exit



event).

94.1.10. Any Transfer or attempt to Transfer any Securities in violation of this Article 94.1 (*Founders Lock-In*) shall be null and void *ab initio*, and the Company shall (a) not register such erroneous Transfer, and where registered, forthwith (b) reject and reverse such erroneous Transfer made or attempted, *suo moto*, without necessity of a Board decision and shall institute necessary proceedings for this purpose, if required by Law.

94.1.11. In the event of death or permanent disability of the Founders (as determined by the Board), (a) all the Locked Shares of the Founders shall be released to the relevant Founder or his legal heir(s) or nominee(s) (as applicable); and (b) the Company may with consent of Lead Investor 1, at its discretion, buy-back all the Locked Shares or if so required by the Board, the legal heir shall Transfer all the remaining Locked Shares, to any other Person acceptable to the Lead Investor 1. It is hereby clarified that such buy-back shall happen at the lowest permissible price under Applicable Law. It is hereby further clarified that any such Transfer of the Locked Shares shall happen at Fair Market Value as may be determined by the Board and agreed in writing by the Lead Investor 1. Furthermore, in the event of death or permanent disability of the Founders (as determined by the Board), the Released Shares shall be treated as applicable in a Good Leaver situation.

94.2. Right of First Refusal on Founders and Other Shareholders Share Transfer

94.2.1. If one or more of the Founder(s) and/or the Other Shareholders (except any inter se-transfer between IITM Incubation and its Affiliates) ("**Selling Shareholder/s**") decide to Transfer all or part of the Equity Securities held by them in the Company ("**Sale Shares**") to any Person ("**Purchaser**"), then the Selling Shareholder/s hereby grants to the Lead Investors ("**ROFR Holder(s)**"), a prior right to purchase all or a portion of the Sale Shares at the same price and on the same terms and conditions as those offered to the Purchaser.

94.2.2. It is clarified that the ROFR Holder(s) shall have the right, but not the obligation, to purchase such Sale Shares, from the Selling Shareholder/s.

94.2.3. The Selling Shareholder/s shall send a written notice (the "**ROFR Notice**") to the Company and the ROFR Holder, setting forth in detail the terms of the proposed sale, including the (a) name of the Purchaser to whom the Transfer is proposed to be made, (b) the proposed price per Share (the "**Sale Price**") and other material terms and conditions, if any, of the proposed Transfer, (c) the date of the proposed Transfer, and (d) number of Sale Shares in the Company that are proposed to be sold. Such notice shall be accompanied evidencing key commercial terms as agreed between the Selling Shareholder/s and the Purchaser regarding the proposed Transfer.

94.2.4. Upon receipt of the ROFR Notice, the ROFR Holder shall have the right, exercisable at their sole discretion to purchase all or any of the Sale Shares at the Sale Price on the terms and conditions mentioned in the ROFR Notice (the "**Right of First Refusal**"), by serving upon the Selling Shareholder a written notice (the "**ROFR Acceptance Notice**") in that regard within



30 (thirty) days of the date of receipt of the ROFR Notice by it (the "**ROFR Exercise Period**").

- 94.2.5. In case a ROFR Holder exercises its Right of First Refusal as mentioned above, the Selling Shareholder/s shall tender such Sale Shares that the ROFR Holder has offered to purchase, within 30 (thirty) days from the date of receipt of such ROFR Acceptance Notice, subject to the necessary consents from Governmental Authorities, if any. The Parties shall use their reasonable endeavors to obtain any such required approvals.
- 94.2.6. In the event that the Selling Shareholder/s do not receive the ROFR Acceptance Notice from the ROFR Holder within the ROFR Exercise Period, then, upon the expiry of the ROFR Exercise Period, the Selling Shareholder/s shall be entitled to Transfer all of the Sale Shares not agreed to be purchased by the ROFR Holder (the "**ROFR Refused Sale Shares**") to the Purchaser, at a price per share no less than the Sale Price and on terms no more favorable than the terms offered to the ROFR Holder in the ROFR Notice sent to the ROFR Holder.
- 94.2.7. Provided further, if the Transfer to the Purchaser is not completed within 30 (thirty) days from the expiry of the ROFR Exercise Period, then the Selling Shareholder/s right to Transfer Shares to a third party shall lapse and the Selling Shareholder/s shall have to comply with the provisions of this Article afresh.

94.3. Tag along right

- 94.3.1. In the event, a ROFR Holder does not exercise its Right of First Refusal as provided in Article 94.2 (*Right of First Refusal on Founder and Other Shareholders Share Transfer*) above, then the ROFR Holder ("**Tag Holder**") shall have the right but not the obligation to (the "**Tag Along Right**") to sell the Equity Securities held by them on a pro-rata basis (computed on a Fully Diluted Basis) in the proposed Transfer by the Founder proposing to sell their Shares ("**Selling Founder**") at the same price per Equity Security and on the same terms on which the Selling Founder/s propose(s) to Transfer the ROFR Refused Sale Shares.
- 94.3.2. In the event, that the proposed Transfer by the Selling Founder/s (in one tranche or a series of tranches) is: (a) more than 50% (fifty percent) of their shareholding in the Company on the Tranche I Closing Date, (b) or such number of shares which shall result in a change of Control of the Company, the Tag Holder shall have the right to sell all of the Equity Securities held by them (computed on a Fully Diluted Basis) in the proposed Transfer and in preference over the shares proposed to be transferred by the Selling Founder/s.
- 94.3.3. The Tag Holder shall have the Tag Along Right to sell the Equity Securities held by them on a pro-rata basis (computed on a Fully Diluted Basis) in the proposed Transfer by the Other Shareholders proposing to sell their Shares ("**Selling Investor**") at the same price per Equity Security and on the same terms on which the Selling Founder/s propose(s) to Transfer the ROFR Refused Sale Shares.
- 94.3.4. If the Tag Holder desires to exercise its Tag Along Right, it shall exercise the said right by



giving the Selling Founder or the Selling Investor, as the case may be, a written notice (the "**Tag Along Notice**") to that effect within the ROFR Exercise Period, specifying the number of Equity Securities held by it with respect to which it has elected to exercise its Tag Along Right (the "**Tag Along Shares**").

94.3.5. In the event the Tag Holder exercises the Tag Along Right, the Selling Founder or Selling Investor, as the case may be, shall cause the Purchaser to purchase the Tag Along Shares from the Tag Holder at the same time and at the same price per share at which the ROFR Refused Sale Shares are being purchased from the Selling Founder or the Selling Shareholder, as the case may be.

94.3.6. If for any reason, the Purchaser acquiring the ROFR Refused Sale Shares hereunder is unable to or refuses to acquire the Tag Along Shares (or any part thereof) in respect of which the Tag Holder have exercised their Tag Along Right within 30 (thirty) days from the date of expiry of the ROFR Exercise Period, then, the Selling Founder or the Selling Investor, as the case may be, shall not be entitled to Transfer any of the ROFR Refused Sale Shares held by them in the Company to the Purchaser.

94.3.7. Tag Holder shall not be required to provide any representations, warranties or covenants, other than those usually and customarily given by a Financial Investor in case the Tag Holder exercise their Tag Along Right.

95. LEAD INVESTORS SHARE TRANSFER

95.1. The Lead Investors, shall be entitled in their absolute discretion to Transfer any or all of their Shares in the Company and/ or all or any of their rights and/ or obligations hereunder (including the right of the Lead Investor 1 to appoint Lead Investor Director, or Lead Investor Observer and/ or their right to vote in the Reserved Matters), in connection with such Transfer, to any third party (excluding a Competitor, subject to Article 96 below), at their sole discretion, subject to the execution of a Deed of Adherence.

95.2. The Company and the Founders undertake to do all reasonable acts and deeds as may be necessary to give effect to any Transfer of Shares as contemplated in this Article 95 (*Lead Investors Share Transfer*), including providing the representations, warranties and indemnities, as may be agreed between them and the proposed transferee. The Founders and the Company shall facilitate and co-operate in any such Transfer, including by cooperating in any due diligence that may be conducted by a proposed purchaser and provide all necessary information relating to the Company to such purchaser, subject to execution of non-disclosure agreement by such potential purchasers.

95.3. Notwithstanding anything to the contrary that may be stated herein, the Lead Investors shall at all times have the right to transfer their rights and obligations to its Affiliates with or without any Transfer of Shares.

96. SALE TO COMPETITOR



- 96.1. No Shareholder of the Company shall Transfer Equity Securities held by them in the Company to any Competitor. It is hereby clarified that the restriction on Transfer of Shares to Competitor under this Article 96 (*Sale to Competitor*) shall not apply to the Lead Investor upon the occurrence of: (i) the occurrence of a Material Breach; or (ii) expiry of the Exit Period.

97. **RIGHT OF PRE-EMPTION FOR NEW ISSUE OF SECURITIES**

- 97.1. Subject to Article 90.7 (*Reserved Matters*) and Article 98 (*Anti-Dilution*), in the event the Company is desirous of issuing any new Equity Securities (except pursuant to: (i) stock splits, stock dividends, or similar transactions which do not alter the relative ownership or shareholding percentage among the Company's Shareholders; (ii) an ESOP or similar stock option plans approved by the Board with the prior consent of Investor; (iii) conversion of the Series Seed CCPS; or (iv) occurrence of an IPO) after the Closing Date, ("**Proposed Issuance**"), the Company shall provide to the Lead Investors ("**Pre-Emptive Right Holder**") a right to subscribe up to such number of the Issuance Shares (*defined below*), calculated on the *pro rata* basis ("**Issuance Ceiling**"), in any such Proposed Issuance ("**Pre-emptive Right**"), to maintain their Shareholding in the Company, on a Fully Diluted Basis. The Company shall give the Pre-Emptive Right Holder written notice of any such Proposed Issuance ("**Issuance Notice**") specifying: (i) the number and class of Equity Securities proposed to be issued ("**Issuance Shares**"); (ii) the price per Equity Security of the Proposed Issuance ("**Issuance Price**"); (iii) the manner and time of payment of the subscription amount; and (iv) the date of the Proposed Issuance ("**Offered Terms**").
- 97.2. The Pre-Emptive Right Holders shall be entitled to exercise its Pre-emptive Right by issuing a written notice to the Company, within 30 (thirty) days of the receipt of the Issuance Notice, intimating the Company that it wishes to exercise its Pre-Emptive Right ("**Exercise Notice**") and shall pay for and subscribe to such number of Issuance Shares (not exceeding the respective Issuance Ceiling as applicable to the Pre-Emptive Right Holder) as it wishes to subscribe to at the Issuance Price and on the terms and conditions set out in the Issuance Notice. Subject to the receipt of the payment against exercise of the Pre-emptive Right by the Pre-Emptive Right Holder, the Company shall issue and allot such number of the Issuance Shares (not exceeding the respective Issuance Ceiling as applicable to the Pre-Emptive Right Holder) as is set out in the Exercise Notice to the Pre-Emptive Right Holder on the date of closing of the Proposed Issuance as stated in the Issuance Notice. The failure of the Right Holders to deliver the Exercise Notice within 30 (thirty) days of receipt of the Issuance Notice shall constitute a waiver of their rights under this Article 97 (*Right of Pre-Emption for New Issue of Securities*) with respect to the purchase of the Issuance Shares but shall not affect its rights with respect to any future issuances or sale of Issuance Shares.
- 97.3. Any such subscription to the Proposed Issuance shall be at the same price and on the same terms as may be offered to any new investor or third person.
- 97.4. In the event the Pre-Emptive Right Holders do not exercise their Pre-emptive Rights in full, either through them or through their Partner Investor (*defined below*), the Board may, in its



discretion, issue and allot such of the Issuance Shares as are not subscribed by the Pre-emptive Right Holders to any Person as it deems fit, except Competitors, on the terms and conditions set out in the Issuance Notice within a period of 45 (forty five) days from the date of the Issuance Notice and such Person shall execute a Deed of Adherence substantially in the format set out in the Agreement. In the event the Company does not complete the issuance and allotment to such party within 45 (forty five) days from the date of the Issuance Notice, the Company shall not proceed with such issuance and allotment without issuing a fresh Issuance Notice and following the procedure set out in this Article 97 (*Right of Pre-Emption for New Issue of Securities*).

97.5. Notwithstanding anything contained above, the Pre-Emptive Right Holders shall have the right at its sole discretion to assign its portion of the Issuance Ceiling to any other Investor, Affiliates, Affiliate fund or limited partners ("**Partner Investor**").

97.6. In addition to the Pre-emptive Right granted under Article 97 above, the Lead Investor 1 shall have the right, but not the obligation, to subscribe for up to 50% (fifty percent) of the new Equity Securities/Shares to be issued in any subsequent round of funding. This right shall be exercisable on the same terms and conditions offered to any other incoming investors participating in such equity fundraise of the Company and in accordance with this Article 97 (*Right of Pre-Emption for New Issue of Securities*).

98. ANTI-DILUTION

98.1. If the Company issues Dilution Instruments to any Person (each such Person, an "Offeree"), after following the procedure under Article 90.7 (*Reserved Matters*), and the issue price per Share paid by the Offeree is less than the price per Share paid for Lead Investor Shares then the Lead Investors shall be entitled to a broad-based weighted average anti-dilution protection for each class of Lead Investor Shares held by them in accordance with the terms and procedure described in Article 98.4 ("**Broad Based Anti-Dilution Protection**") below. The anti-dilution protection for the Lead Investor Shares shall be affected either by issuance of new Securities and/or an adjustment to the conversion price of the Lead Investor Shares (as applicable), Transfer of Shares by the Founders or by any other method as agreed by the Lead Investor 1 and as per Applicable Law. The anti-dilution adjustment shall be made on the date of the issuance of the Dilution Instruments and not upon the subsequent issuance of any Securities into which the Dilution Instruments convert, exchange or may be exercised. Further, the Dilution Instruments will be issued only after an appropriate mechanism for giving effect to the anti-dilution right is implemented. In case of anti-dilution protection triggers, the protection under this Article shall be applicable on Acquired Shares and Series Seed CCPS.

98.2. The anti-dilution right set out in Article 98 (*Anti-Dilution*) herein shall not apply to: (i) issuance of Shares pursuant to a QIPO, (ii) issuance of ESOPs or Equity Shares issued upon exercise of employee stock options which are approved in accordance with the employee stock option scheme adopted by the Company in accordance with the terms of the Shareholders Agreement; (iii) stock splits, stock dividends, or similar transactions which do not alter the relative ownership or shareholding percentage among the Company's Shareholders; (iv)



conversion of the Series Seed CCPS; or (v) any issuance of Shares in respect of which the anti-dilution rights under this Article 98 (*Anti-Dilution*) are expressly waived by the Lead Investor 1 with respect to Lead Investor Shares in writing.

98.3. In the event that the Company proposes to undertake an issuance of Dilution Instruments that would result in the anti-dilution provisions herein being effected, the Company shall notify the holders of Lead Investor Shares ("**Dilution Offer Notice**") of the extent of adjustment required, where applicable, (calculated in accordance with the terms and procedure in Article 98.4 (*Broad Based Anti-Dilution Protection*)).

98.4. **Broad Based Anti-Dilution Protection Formula**

$$NP = (P1) \times \frac{\{(Q1) + (Q2)\}}{\{(Q1) + (R)\}}$$

For the purposes of this Article, "**NP**" is the new conversion price for Lead Investor Shares (as applicable);

"**P1**" is the price of the Lead Investor Shares;

"**Q1**" means the number of Equity Shares Outstanding immediately prior to the new issue;

"**Q2**" means such number of Equity Securities that the aggregate consideration received by the Company for such new issuance the Offeree would purchase at P1 (i.e. the price of Lead Investor Shares prior to adjustment);

"**R**" means the number of Equity Shares issuable/issued in such new issuance and where the Dilution Instruments are convertible in nature, number of Equity Shares issuable upon conversion of the Dilution Instruments being issued in such new issuance.

For purposes of this Article, the term "**Equity Shares Outstanding**" shall mean the aggregate number of Equity Shares of the Company then outstanding (assuming for this purpose the exercise and/or conversion of all then-outstanding Equity Securities exercisable for and/or convertible into Equity Shares, including without limitation the conversion of the Lead Investor Shares, as applicable).

The price of the Lead Investor Shares shall be deemed to be adjusted in the manner detailed above and shall be issued, at lowest permissible price permitted under Applicable Law, such number of shares as equals: (i) the total number obtained upon dividing the total subscription amount paid by the Lead Investors, towards subscription of the Series Seed CCPS, by the adjusted price (i.e., **NP** in the above formula); less (ii) the total number of Shares already issued and held by the Lead Investors.



98.5. For the purpose of Article 98.1:

- (i) The price per Equity Share paid by an Offeree to whom Equity Shares have been issued, shall be obtained by dividing the aggregate amount paid by such Offeree towards subscription of the relevant class of Equity Shares by the total number of the relevant class of Equity Shares issued to the Offeree; and
- (ii) The price per Equity Share paid by an Offeree to whom any convertible instrument has been allotted shall be obtained by dividing the aggregate price paid by such Offeree for all the convertible instruments (including the amount payable, if any, at the time of conversion of such convertible instrument) by the maximum number of Equity Shares that the convertible instrument is entitled to convert into, in accordance with its terms.

98.6. It is clarified that the terms of the new Equity Securities issued to the holders of Lead Investor Shares, shall be no less favourable than any Shares issued or proposed to be issued to any incoming shareholder/Offeree.

98.7. **Alternative Instruments**

98.7.1. The right of the Lead Investors to subscribe to Dilution Instruments, as part of the adjustment mechanism, shall extend to such other alternative instrument as may be issued in the event of any regulatory restriction barring the Lead Investors from subscribing to the Dilution Instruments. Subject to Applicable Law, the Founders and the Company shall ensure that the price and terms of the Dilution Instrument remains unchanged as provided in the Dilution Offer Notice.

98.7.2. The Parties undertake to ensure that all actions necessary to give effect to this Article 98 (*Anti-Dilution*) shall be taken as and when required.

99. **LIQUIDATION PREFERENCE**

99.1. Upon the occurrence of a Liquidation Event, the proceeds available from the Liquidation Event, after paying the outstanding debt and/ or statutory dues as permitted under Applicable Law ("**Liquidation Proceeds**") shall be distributed in the following manner:

- (i) Firstly, before any distribution is made to any Shareholder or otherwise to any other Persons, the Lead Investors shall be entitled to receive, for each such Lead Investor Shares an amount higher of: (a) their aggregate investment, along with any accrued and unpaid dividend on such Shares, or (b) its pro rata entitlement on an As-If-Converted-Basis (as applicable) ("**Liquidation Preference Amount**");
- (ii) Secondly, after payment of the Liquidation Preference Amount in full, subject to



Applicable Law, the remaining Liquidation Proceeds (if any) shall be distributed to the holders of Equity Shares (including Lead Investors), Other Shareholders and Founders (for the Equity Shares held by them), in proportion to their respective shareholding in the Company on an As-If-Converted-Basis.

99.2. If the Liquidation Proceeds available for distribution is lower than the Liquidation Preference Amount, then such Liquidation Proceed would be paid to the Lead Investors in full.

99.3. To facilitate realization of the Liquidation Preference Amount invested by the Lead Investors, the Lead Investors shall be entitled to any of the following at their option, subject to Applicable Law and in accordance with the terms of the Shareholders Agreement: (i) issuance of additional Shares to the Lead Investors at the lowest permissible price; (ii) Transfer of Shares held by the Founders to the Lead Investors at lowest price permissible under Applicable Law; (iv) buy back of Shares held by the Founders; (v) reduction or redistribution of the sale proceeds receivable by the Founders; (vi) distribution of cash realized from the Liquidation Event to the Lead Investors; or (vii) any other measures as may be necessary to ensure that the Lead Investors realize the Preference Shareholders Liquidation Preference Amount. It is clarified that the personal assets of the Founders (excluding the Shares held by them in the Company) shall not be part of any transaction as contemplated under this Article 99.3 to help the Lead Investors realize the Preference Shareholders Liquidation Preference Amount.

100. **NON-SOLICITATION, NON-COMPETE & BUSINESS EXCLUSIVITY**

100.1. In consideration of the Lead Investors investing in the Company, the Founders agree that they shall not as an individual, employee, consultant, independent contractor, partner or in association with any other Person, except on behalf of the Company, directly or indirectly, and regardless of them continuing to be employed by the Company, or the reason for them ceasing to be so employed by the Company or the reason for them ceasing to be Shareholders of the Company, directly or indirectly, (a) before the expiry of 24 (twenty four) months from the date Founder(s) cease to be an employee of the Company or from the date Founder(s) or the Founder(s) or any of their Affiliates ceases to hold any Equity Securities in the Company, whichever is later; or (b) till such time as the Lead Investors holds shares of the Company:

100.1.1. set up, solicit business on behalf of, render any services to, engage in, guarantee any obligations of, extend credit to, or have any ownership interests (subject to Article 100.2) or other affiliation, or management or lead responsibility in, any business (whether directly or indirectly) which is engaged in a business that is similar to and competes with the Business of the Company;

100.1.2. solicit, render services to or for, or accept from, anyone who is a client or customer of the Company (whether present or future), any business of the type performed by the Company;

100.1.3. interfere or seek to interfere or take such steps as may interfere with the continuance of supplies to the Company (or the terms relating to such supplies) from any



suppliers, or sale to any distributor or other customer of the Company; or

100.1.4. employ as an employee or retain as a consultant any Person, firm, corporation or other form of entity who is then or at any time during the 6 (six) months period prior to the date of the purported solicitation was, an employee of or exclusive consultant to, the Company, persuade or attempt to persuade any employee of or exclusive consultant to the Company, to leave the employment of the Company or to become employed as an employee or retained as a consultant by any other Person, firm, corporation or other form of entity.

100.2. Nothing contained in Article 100.1 shall be construed to restrict the Founders from making investment in securities of any listed company or any other company involved in non-competing Business, not greater than 5% (five percent) of such company's paid-up share capital on a fully diluted basis.

100.3. The Parties acknowledge that (a) the type and periods of restriction imposed in the provisions of this Article 100 (*Non-solicitation, Non-Compete and Business Exclusivity*) are fair and reasonable and are reasonably required in order to protect and maintain the legitimate business interests and the goodwill associated with the Business; and (b) the time, scope, geographic area and other provisions of this Article 100 (*Non-solicitation, Non-Compete and Business Exclusivity*) have been specifically negotiated by sophisticated commercial parties.

100.4. Business Exclusivity

100.4.1. The Founders shall devote all of their reasonable time, energy and efforts to the activities of the Company and the promotion of the Business till the time they are in employment with the Company.

100.4.2. The Founders shall ensure that all opportunities for new projects and businesses relating to the Business that are developed or sourced by, or offered to, the Founders, including any ownership, title, IPR or any other interests, shall be referred/ transferred exclusively to the Company.

101. INFORMATION RIGHTS

101.1. Reporting

- (i) The Company and the Founders shall cause the Company to carry out the following actions:
 - a. For each Financial Year during which the Shareholders Agreement is effective, prepare a budget for such Financial Year with respect to the Company, which shall specify, amongst other things, an estimate of the capital expenditures, required financing for capital expenditures, required working capital financing, revenues,



materials and labor costs, general and administrative expenses, interest and depreciation costs, and gross and net profits, with respect to the Company, in a form acceptable to Lead Investor 1;

- b. Not later than 30 (thirty) Business Days prior to the beginning of each Financial Year, call a meeting of the Board and present the budget for the subsequent Financial Year;
- c. Not later than 30 (thirty) Business Days prior to the beginning of each Financial Year, call a meeting of the Board to make a presentation of results of the Company up to the third quarter of a Financial Year; and
- d. Undertake periodic reviews and provide detailed explanations to the Board or the equivalent governing bodies of the Company.

(ii) The Company shall and the Founders shall cause the Company, to provide to the Lead Investors with the following information in respect of the Company, to the satisfaction of the Lead Investor 1 and/ or in the format prescribed by Lead Investor 1:

- a. Unaudited quarterly and annual Financial Statements comprising the cash flow statements, the balance sheet, the profit and loss statements of the Company, within 15 (fifteen) Business Days (for the quarterly Financial Statements) and 60 (sixty) Business Days (for the annual Financial Statements) of the end of each period, respectively, in a format agreeable to the Lead Investor 1;
- b. Annual audited Financial Statements, including cash flow statements of the Company, within 120 (one hundred and twenty) days of the end of the relevant Financial Year;
- c. Joint monthly operational reports/management information system reports ("MIS") of the Company, within 10 (ten) days of the end of each month in a format agreeable to the Lead Investor 1;
- d. Annual operating financial budget and annual Business Plan as approved by the Board, within 30 (thirty) days of the Board approving the same;
- e. Certified true copies of the minutes of Board, Board committees' and Shareholders meetings of the Company, within 30 (thirty) Business Days of the meeting concerned;
- f. Such other information regarding the condition or operations, financial, or Business, of the Company as the Lead Investors may from time-to-time reasonably request in order to comply with any internal fund compliance and notices from the regulatory authorities including but not limited to SEBI.

101.2. Accounts



The Company and the Founders shall ensure that the accounts, records and accounting information of the Company: (a) are maintained in accordance with the Act and all other Applicable Laws; (b) reflect generally accepted accounting principles, procedures and practices under Indian GAAP which have been consistently applied; and (c) all annual audited Financial Statements shall be prepared by an accounting firm appointed in accordance with the provisions of the Shareholders Agreement.

101.3. Visitation and Inspection Rights

The Lead Investor 1, including their respective accountants, auditors, legal counsels, or any other authorized representative of their choice, shall be entitled, at the cost of the Company annually to 1 (*one*) visit during normal business hours, upon prior notice of 5 (five) Business Days, to visit and inspect the Company premises and properties, to examine and take copies of its books of accounts and records and to discuss the affairs, finances, accounts, budget and operations of the Company. Any such visits in addition to the agreed 1 (*one*) visit annually, and inspections and the costs with respect to the same shall be solely borne by the Lead Investor 1. It is further clarified that in instances of any material breach of the Shareholders Agreement, such limit on the annual visit and inspection and costs shall fall away. The Lead Investor 1 can further conduct internal audit or due diligence as the Lead Investor 1 may in its sole discretion deem fit. The Lead Investor 1 shall ensure that the confidentiality of the information received by them by exercising their inspection rights under this Article 101 (*Information Right*) is strictly maintained, subject to the exceptions set out in Article 107 (*Confidentiality*). It is further clarified that the Directors of the Company shall have such visitation rights as may be prescribed under the Act.

102. EMPLOYEE STOCK OPTION PLAN

102.1. The Company has adopted an ESOP Scheme which shall encompass the issuance of options relating to the vesting of such number of Equity Shares of the Company, constituting 10% (ten percent) of the shareholding of the Company as on the Tranche I Closing Date, as calculated on a Fully Diluted Basis. Any costs and expenses incurred by the Lead Investors, including but not limited to reasonable legal and professional advisors' fees, resulting from such increase and the resulting anti-dilution, shall be paid and borne by the Company. The size, terms, and conditions of the ESOP Scheme and plan shall be subject to the approval of the Lead Investor 1.

102.2. The Equity Shares allotted pursuant to the ESOP Scheme shall be issued, held and Transferred in accordance with the terms of the ESOP Scheme. It is clarified that the Persons who became Shareholders of the Company pursuant to the ESOP Scheme shall be subject to the same obligations under the Shareholders Agreement, as the other Shareholders. The ESOP Scheme shall be adopted by the Board, with the consent of Lead Investor 1.

103. TERMINATION

103.1. The Shareholders Agreement may be terminated:

- (i) Automatically on termination of the SSA prior to the Tranche I Closing Date;



- (ii) Automatically against a Shareholder, if such Shareholder ceases to be a shareholder of the Company, except with respect to the surviving clauses under the Shareholders Agreement and/or
- (iii) At any time by the mutual written agreement of the Parties.

103.2. Effect of Termination

- (i) The right to terminate in the situations described in Article 103.1 shall be without prejudice to all the rights and remedies under Applicable Law available to the Parties, including the right to seek, as an alternative to termination, specific performance of obligations under the Agreement or terminate the Agreement and seek losses for the breach from the Company and/or the Founders committed during the period prior to such termination. Nothing in the Shareholders Agreement shall oblige any Party to terminate the Shareholders Agreement in the situations described above.
- (ii) The termination of the Shareholders Agreement shall not relieve any Party of any obligation or liability accrued prior to the date of termination.
- (iii) The exercise of the remedies under this Article 103 (Termination) is in addition to and shall not, in any way, affect or prejudice any right or remedy accrued to the Lead Investors against the Founders or the Company under the other provisions of the Shareholders Agreement,
- (iv) Notwithstanding the above, the provisions of Article 103 (Termination), Article 106 (Notices), Article 107 (Confidentiality), Article 108 (Intellectual Property Rights), Article 99.8 (Governing Law And Jurisdiction), Article 109.9 (Dispute Resolution), shall survive the expiry or earlier termination of the Shareholders Agreement. Any provision and obligation of the Parties relating to or governing their acts, which expressly or by its nature survives such termination or expiration, shall be enforceable with full force and effect notwithstanding such termination or expiration, until it is satisfied in full or by its nature expires.

104. MATERIAL BREACH

- 104.1. The Founders covenant that they shall immediately upon (and in any event within 7 (seven) days of) any of them becoming aware of the occurrence of any Material Breach, notify Lead Investor 1 in writing of such occurrence and the steps taken/proposed to be taken by the Founders to remedy such breach. In the event of Lead Investor 1 becoming aware of the occurrence of any Material Breach (other than by way of Founder's intimation under the preceding sentence), Lead Investor 1 shall (if such breach is curable) give the Founders a written notice ("**Notice of Cure**") requiring the Founders to cure such Material Breach. The Company shall, provide a copy of the Notice of Cure to the Other Shareholders immediately upon its



issuance to the Company and Founders. In any event, the Founders shall, within a period of 30 (thirty) days from the date of the receipt of the notice from the Founders as set forth herein or the Notice of Cure ("**Cure Period**") take best efforts to cure the Material Breach. Notwithstanding anything to the contrary in the Shareholders Agreement if such breach being capable of remedy, has not been remedied within the Cure Period, with effect from the expiry of the Cure Period, Lead Investors shall be entitled to exercise the following rights:

104.1.1. Accelerate all the exit options available to the Lead Investors under Article 93 (*Exit*) of the Shareholders Agreement including without limitation require the Company to buy back all or part of the Shares held by the Lead Investors at a price, not less than the FMV then in effect; exercise the Drag Along Rights as per Article 93.3 (*Drag Along Right*) of the Shareholders Agreement, notwithstanding the fact the Exit Period has not expired. It is hereby clarified that in the event any exit options under Article 93 (*Exit*) of the Shareholders Agreement triggered by the Lead Investor 1 with respect to Material Breach, the Other Shareholders shall have a pari-passu right to participate in any such exit options triggered by the Lead Investor 1 pursuant to this Article herein; and/ or

104.1.2. Reconstitute the Board and appoint a majority of the Directors thereon; and/or

104.1.3. The right available to the Founders to be appointed as Founder Directors under Article 90 (*Corporate Governance*) shall cease. However, if the Material Breach occurs solely due to termination of employment of any Founder individually (including for Cause), then the right to be appointed as a Founder Director shall fall away for only such Founder whose employment has ceased.

104.2. In the event of occurrence of a Material Breach, the Lead Investors shall not be required to comply with their obligations, except for their *inter-se* obligation, under the Shareholders Agreement thereafter provided however, they shall continue to be entitled to all their rights under the Shareholders Agreement which shall remain unaffected.

104.3. The Founders and the Company shall take all actions necessary to correct and cure its actions or the lack of it which resulted in such Material Breach within a period of 30 (thirty) days from the date of Notice of Cure and the Company shall compensate the Lead Investors and Other Shareholders against all the reasonable out-of-pocket expenses incurred by the Lead Investors and Other Shareholders for availing the remedies under this Article 104 (*Material Breach*) within the period mentioned above.

105. SPECIFIC PERFORMANCE

105.1. The Parties hereto shall be entitled to an injunction, restraining order, right for recovery, suit for specific performance or such other equitable relief as a court of competent jurisdiction may deem necessary or appropriate to restrain the other Parties from committing any violation of their covenants, representations and obligations or for enforcing the performance of the covenants, representations and obligations contained in the Shareholders Agreement. These



injunctive remedies are cumulative and are in addition to any other rights and remedies the Parties may have at law or in equity, including without limitation a right for Damages.

106. NOTICES

106.1. Notices, demands or other communication required or permitted to be given or made under the Shareholders Agreement shall be in writing and delivered personally or sent by prepaid post with recorded delivery, or by email addressed (with return receipt requested) to the intended recipient at its address and/or email address set forth the Agreement for the Other Shareholders and the email addresses set forth in the Preamble for the Founders, Lead Investors, and the Company, or to such other address or email address as a Party may from time to time duly notify to the others.

106.2. Any such notice, demand or communication shall, unless the contrary is proved, be deemed to have been duly served at the time of delivery in the case of service by delivery in person or by post, and on receipt of a valid return receipt in the case of service by email.

107. CONFIDENTIALITY

107.1. Each Party shall keep all Confidential Information and any information relating to each other Party including any information concerning the business, accounts, finance, contractual arrangements or intellectual property, transactions, affairs or property and other dealings, information relating to the transactions herein and the Shareholders Agreement (collectively referred to as "Information") confidential.

107.2. A press release, public statement or other communication about the matters in the Shareholders Agreement may be made by the Company and/or the Founders only with the Lead Investor 1's written consent. Subject to the aforesaid, no Party may issue any press release or make any public statement or other communication about the matters in the Shareholders Agreement unless it is required by applicable Law, by the rules of a stock exchange or by any other competent regulatory or Government Authority, provided however, that nothing in the Shareholders Agreement shall restrict any of the Parties from disclosing any information as may be required under Applicable Law subject to providing a prior written notice of 7 (seven) days to the other Parties. Subject to Applicable Law, such prior notice shall also include (a) details of the Information intended to be disclosed along with the text of the disclosure language, if applicable; and (b) the disclosing Party shall also cooperate with the other Parties to the extent that such other Party may seek to limit such disclosure including taking all reasonable steps to resist or avoid the applicable requirement, at the request of the other Parties.

107.3. Notwithstanding the fact that the Lead Investors may have confirmed that, it has no objection or consented to the announcement, it shall be the Company and the Founders' obligation and responsibility to ensure that the announcements made are accurate and in compliance with all Applicable Laws.



107.4. Nothing in this Article 107 (*Confidentiality*) shall restrict any Party from disclosing Information for the following purposes:

- (i) To the extent that such Information is in the public domain other than by breach of the Shareholders Agreement;
- (ii) To the extent that such Information is required to be disclosed by any Applicable Law or required to be disclosed to any Governmental Authority to whose jurisdiction such Party is subject or with whose instructions it is customary to comply;
- (iii) To the extent that any of such Information is/are later acquired by such Party from a source not obligated to any other Party hereto, or its Affiliates, to keep such Information confidential;
- (iv) In so far as such disclosure is reasonably necessary to such Party's employees, directors or professional advisers, provided that such Party shall procure that such employees, directors or professional advisers treat such Information as confidential. For the avoidance of doubt, it is clarified that disclosure of information to such employees, directors or professional advisers shall be permitted on a strictly "*need-to-know basis*";
- (v) To the extent that any of such Information was previously known or already in the lawful possession of such Party, prior to disclosure by any other Party hereto; and
- (vi) The Lead Investors may disclose such Confidential Information to its investment committee, Affiliates, Board of Directors, shareholders, advisory committees, limited partners, and similar bodies, and Persons related thereto, in each case where such Persons have been specifically informed about the confidential nature of the information disclosed to them.

107.5. The Parties warrant that they shall at all times keep confidential (and shall use best endeavours to procure that its respective employees and agents keep confidential) any Confidential Information which is in their possession or which they may acquire in relation to the Company or in relation to the clients, business or affairs of any other Party hereto and shall not use or disclose such information except with the consent of every other Party to the Shareholders Agreement.

107.6. The Parties, in the course of their relationship with the Company, are likely from time to time to obtain access, knowledge or right to use (by agreement or conduct or otherwise) of trade secrets, intellectual property rights and other Confidential Information of the Company and to have dealings with the customers and suppliers of the Company and in order to protect such rights and other Confidential Information and the goodwill of the Company, the Parties



undertake to not to, directly or indirectly engage in competing business with that of the Company or disclose, misuse, pass on, license, publish, exploit, distribute such trade secrets, intellectual property rights and other Confidential Information, details of the customers, suppliers without express consent of the Board.

- 107.7. The Parties agree that the confidentiality terms of this Article shall apply to the employees of each Party and also to the Lead Investor Director and the Lead Investor Observer, who shall be bound to maintain secrecy of the matters discussed at the Board and General Meetings of the Company and the Company may execute a non-disclosure agreement with the Lead Investor Director and the Lead Investor Observer on the same terms as set forth above the draft of which shall be approved by the Company.

108. **INTELLECTUAL PROPERTY RIGHTS**

- 108.1. The Parties agree that all IP Rights in any materials, Information or products of the Company and title, and interest therein shall remain with the Company or its licensors. Nothing contained herein is intended to grant any rights to the Founders or the Lead Investors under any patents, copyrights, trademarks, or trade secrets of the Company.
- 108.2. The Founders acknowledge that they may make, discover or create materials and products in the course of their employment and association with the Company and agrees that in this respect they have an obligation to protect such developments and use them solely to further the interests of the Company.
- 108.3. Subject to the provisions of the Applicable Laws relating to intellectual property for the time being in force in India, if at any time during their employment, the Founders make or discover or participate in the making or discovery of any Intellectual Property Materials relating to or capable of being used in the Business for the time being carried on by the Company or any of its subsidiaries or associated companies, the Founders shall execute all such documentation to and do all things which may be necessary or desirable to enable the Company to obtain IP Rights in the Intellectual Property Materials in such parts of the world as may be specified by the Company and for vesting the same in the Company.
- 108.4. The employment contracts between the Founders and the Company shall contain detailed and binding articles with respect to protection of the Company's IP Rights and shall take prevalence in case of any inconsistencies between the Shareholders Agreement and the employment contract.

109. **MISCELLANEOUS**

109.1. **Assignability**

- 109.1.1. Subject to the provisions of the Shareholders Agreement, the Founders shall not be permitted to assign any of their rights and/or obligations or management/governance



rights under the Shareholders Agreement to any Person (including Affiliates) without the prior written approval of Lead Investor 1.

109.1.2. The Parties agree that the Lead Investors may, subject to the provisions of the Agreement, at its/ their sole discretion, assign any of its rights under the Shareholders Agreement to any third party, subject to such assignment being accompanied by a Transfer of Equity Securities (except in case of assignment of the rights to the Affiliates) held by the Lead Investors provided that such assignment does not result in a duplication of rights and subject to the provisions of Article 96 (*Lead Investors Share Transfer*) and Article 96 (*Sale to Competitor*). The Affiliate or third party as the case may be, shall execute a Deed of Adherence as provided the Agreement. Upon communication of any such assignment to an Affiliate or a third party as the case may be, the Company shall acknowledge such transferee's rights as long as such assignment does not result in duplication of rights of the Lead Investors.

109.2. Non-Exclusive Remedies

All the remedies available to the Lead Investors, either under the Shareholders Agreement or under Applicable Law or otherwise afforded, will be cumulative and not alternative or non-exclusive of any rights, powers, privileges, or remedies provided by the Shareholders Agreement, Applicable Law or otherwise. Each Party declares that it is impossible to measure in money the damages that would be suffered by the other Party by reason of the failure by a defaulting Party to perform any of the obligations hereunder. Therefore, the Parties agree that each of the Parties shall be entitled to an injunction, restraining order, right for recovery, suit for specific performance or such other equitable relief as a court of competent jurisdiction may deem necessary or appropriate to restrain the defaulting Party from committing any violation or to enforce the performance of the covenants, representations and obligations contained in the Shareholders Agreement. These injunctive remedies are cumulative and are in addition to any other rights and remedies the Parties may have at law or in equity.

109.3. Severability

The invalidity or unenforceability of any provision in the Agreement shall in no way affect the validity or enforceability of any other provision herein. In the event of the invalidity or unenforceability of any provision of the Agreement, the Parties shall immediately negotiate in good faith to replace such a provision with another, which is not prohibited or unenforceable and has, as far as possible, the same legal and commercial effect as that which it replaces.

109.4. Delays or Omissions

No delay or omission in exercise of any right, power or remedy accruing to any Party, upon any breach or default of any Party under the Transaction Documents, shall impair any such right, power or remedy of any Party nor shall it be construed to be a waiver of any such breach or default, or an acquiescence therein, or of any similar breach or default thereafter occurring; nor shall any waiver of any other breach or default theretofore or thereafter occurring. Any waiver, permit, consent or approval of any kind or character on the part of any Party of any breach or



default under the Agreement or any waiver on the part of any Party of any provisions or conditions of the Agreement, must be in writing and shall be effective only to the extent specifically set forth in such writing.

109.5. Independent Contractors

The Parties are independent contracting parties and shall have no power or authority to assume or create any obligation or responsibility on behalf of each other. The Shareholders Agreement shall not be construed to create or imply any partnership, agency or joint venture, or employer-employee relationship.

109.6. Entire Agreement

The Shareholders Agreement represents the entire agreement between the Parties in relation to the terms of the matters contained in the Shareholders Agreement and shall supersede and extinguish any previous drafts, agreements or understandings between all or any of the Parties (whether oral or in written) relating to the subject matter herein and shall include all schedules and amendments executed by the Parties mutually in writing.

109.7. Further Assurances

The Company and the Founders shall, from time to time upon the written request of the Lead Investors:

- (i) promptly and duly execute and deliver all such further instruments and documents, and do or procure to be done all such acts or things, as the Lead Investors may reasonably deem necessary or desirable in obtaining the full benefits of the Shareholders Agreement and of the rights and ownership herein granted; and
- (ii) do or procure to be done each and every act or thing which the Lead Investors may from time to time reasonably require to be done for the purpose of enforcing Investor's rights under the Shareholders Agreement.

109.8. Governing Law and Jurisdiction

The Agreement shall be governed by and construed in accordance with the laws of India and subject to Article 109.9 (*Dispute Resolution*) below, the courts at Chennai, India shall have exclusive jurisdiction on the matters arising from the Agreement, without regard to the principles of conflicts of laws.

109.9. Dispute Resolution

- (i) If any dispute or difference arises between any of the Parties hereto during the subsistence of the Shareholders Agreement or thereafter, in connection with the validity, interpretation, implementation or alleged Material Breach/ breach as contemplated under Article 114 (*Material Breach*) above of any provision of the Shareholders Agreement or regarding any question, including the question as to whether the



termination of the Shareholders Agreement by any Party hereto has been legitimate ("Dispute"), the Parties hereto shall endeavour to settle such dispute amicably.

- (ii) Any Dispute that remains unresolved for a period of 60 (sixty) days shall be resolved by binding arbitration conducted in accordance with the Arbitration and Conciliation Act, 1996 read with the amendments.
- (iii) The disputing Parties shall mutually appoint a sole arbitrator to conduct the arbitration. If an arbitrator is not appointed within 30 (thirty) of a request by any disputing Party, each disputing Party shall appoint 1 (one) arbitrator each and the 2 (two) arbitrators appointed shall appoint a third arbitrator who shall act as a presiding arbitrator.
- (iv) The seat and the venue of the arbitration shall exclusively be Chennai, India.
- (v) Arbitration awards rendered shall be final, binding and shall not be subject to any form of appeal. Judgment upon any arbitral award rendered hereunder may be entered in any court having jurisdiction, or an application may be made to such court for a judicial acceptance of the award and an order of enforcement, as the case may be;
- (vi) The award rendered by the arbitrator shall be final, conclusive and binding, and shall be subject to forced execution in any court of competent jurisdiction.
- (vii) Deposits to cover the costs of arbitration shall be shared equally by the disputing parties thereto. The award rendered by the arbitrator shall, in addition to dealing with the merits of the case, fix the costs of the arbitration.
- (viii) All submissions and awards in relation to arbitration under the Shareholders Agreement shall be made in English and all arbitration proceedings and all pleadings shall be in English.

109.10. Amendments and Waivers

Any provision of the Shareholders Agreement may be amended or waived if, and only if such amendment or waiver is in writing and signed by the Company, the Founders and the Lead Investors. No modification, amendment or waiver of any of the provisions of the Shareholders Agreement shall be effective unless agreed in writing by the Company, the Founders and the Lead Investors. Notwithstanding anything stated herein, consent of each Shareholder shall be required for any amendment, modification or waiver of rights, that adversely alters any rights of such Shareholder in a manner that is disproportionate relatively, to the rights of the other Shareholders who are similarly placed in respect of such rights. Without prejudice to the generality of the foregoing, any amendment, modification or variation in the format of the Deed of Adherence set out in the Agreement shall require the prior written consent of the Lead Investors.

109.11. Investment



The Lead Investors and their respective Affiliates invest in numerous companies, some of which may compete with the Company. The Company and the Founders confirm that they will not have any objection to the Lead Investors or any of their Affiliates investing in the equity, entering into a joint venture, or collaborating with any company/ entity in the same or allied field (as the Business) in India or elsewhere subject to the Lead Investors adhering to the confidentiality obligations as set out under the Shareholders Agreement.

The Lead Investors shall be entitled to appoint an observer to the board of any Competitor of the Company; provided, however, that for so long as the Lead Investors holds any Securities in the Company, the Lead Investors shall not appoint a director to the board of any such Competitor.

109.12. Related Party Transaction

The Founders and the Company hereby agree and undertake that all agreements and arrangements with the Company and any of the Related Parties shall be entered into on an arm's length basis and subject to the other provisions of the Shareholders Agreement.

109.13. Not a Promoter

The Parties acknowledge and agree that the Lead Investors have subscribed and purchased the relevant Equity Securities as financial investors. Subject to Applicable Law, the Company and the Founders shall not, without the approval of the Lead Investors, classify such Person as a "promoter" of the Company for any reason whatsoever and that the Company and the Founders acknowledge that the Equity Securities held by the Lead Investors are not subject to any restriction (including that of lock-in, other than under Applicable Law, or other restriction) which are applicable to Founders under any Applicable Law.

109.14. Counterparts

The Shareholders Agreement may be executed in three or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

109.15. Superior Rights

The Founders and the Company agree that the Securities held by the Lead Investors shall rank senior to all other instruments, that are outstanding and/or which may be issued by the Company from time to time in all respects including but not limited to voting rights and dividends. The Lead Investors shall be entitled to all superior rights or other rights that may be given to any other investor, if any, in the future or present. Further, the Founders and the Company shall take all such necessary steps to ensure that the provisions of this Article 92.4 (Superior Rights) are given effect to for the benefit of the Lead Investors.

109.16. Signatures



Each Party hereto shall receive by delivery or facsimile transmission or e-mail transmission a duplicate original of the Agreement executed by each Party, and each Party agrees that the delivery of the Agreement by facsimile transmission or e-mail transmission shall be deemed to be an original of the Agreement so transmitted. The delivery of signed counterparts by facsimile transmission or electronic mail in 'portable document format' ('.pdf') shall be as effective as signing and delivering the counterpart in person.

109.17. Subsidiaries

Unless stated otherwise, any and all rights available to the Lead Investors in or with respect to the Company under the Transaction Documents shall be also available to the Lead Investors in the Company's Subsidiaries, applied *mutatis mutandis*, and the Company and Promoter shall procure that the Company's Subsidiaries comply with such related obligations.



SCHEDULE I

Terms of Series Seed CCPS

All capitalized terms used herein but not defined shall have the meaning given to them under the Agreement.

1. Face Value

Each Series Seed CCPS shall have a face value of INR 10 (Indian Rupees Ten only).

2. Term

Unless converted in accordance with the terms of the Agreement, the Restated Articles and Applicable Law, the term of the Series Seed CCPS shall be a maximum of 19 (nineteen) years from their date of issuance.

3. Distributions

3.1 If the Board proposes to declare any dividend on Shares, the holders of the Series Seed CCPS shall be paid, out of the dividend proposed to be declared, a cumulative dividend equal to 0.01 % (zero point zero one per cent) per annum with respect to the Series Seed CCPS but in preference and priority to the payment of dividend in respect of all other Shares, present or future. Without prejudice to the foregoing and in addition thereto, upon the Board declaring dividend on any Shares, the holders of the Series Seed CCPS shall be entitled to participate in such dividend on an as if converted basis, in priority to payment of dividend to the holders of the Equity Shares.

3.2 Upon conversion of the Series Seed CCPS into Equity Shares, the holders of the Series Seed CCPS shall be entitled to participate in the dividend on the Equity Shares, on a *pari passu* basis with the holders of Equity Shares.

4. Voting

4.1 Each Series Seed CCPS shall entitle the holder of the number of votes equal to the number of whole or fractional Equity Shares into which such Series Seed CCPS could then be converted. Each Series Seed CCPS shall have voting rights on every resolution placed before the Company on the basis of its shareholding in the Company on an "as is converted" basis i.e. assuming the conversion of all the Series Seed CCPS held by it into Equity Shares. The provisions of Sections 43 and 47 of the Act shall not be applicable to the Company and the Series Seed CCPS shall carry voting rights as set out herein.

5. Conversion

5.1 The Series Seed CCPS shall initially be convertible into Equity Shares at a conversion ratio of 1:1 (the "**Series Seed Conversion Ratio**"), without the holders of the Series Seed CCPS being required to pay any amount for such conversion. Notwithstanding anything contained elsewhere in the Shareholders Agreement, the Series Seed Conversion Ratio shall be proportionately and appropriately adjusted (as required) for any adjustment event and/ or to give effect to the rights of the Lead Investors under the Shareholders Agreement. It is hereby clarified that the Equity Shares issued pursuant to the conversion of Series Seed CCPS shall carry the same rights.



- 5.2 The Series Seed CCPS conversion price shall initially be the issue price i.e. INR 21,628 (Indian Rupees Twenty One Thousand Six Hundred and Twenty Eight only) ("**Series Seed Conversion Price**"). The Series Seed Conversion Price shall be adjusted as per the provisions of this **SCHEDULE IV (Terms of Series Seed CCPS)** and other terms and conditions of the Shareholders Agreement. It is clarified that from the effective date of each adjustment to the Series Seed Conversion Price, the term "Series Seed Conversion Price" shall thereafter mean the adjusted Series Seed Conversion Price and accordingly the adjusted Series Seed Conversion Ratio for the Series Seed CCPS shall be determined.
- 5.3 The Series Seed CCPS shall be convertible into Equity Shares at the option of the holders of the Series Seed CCPS in accordance with paragraph 5.3. Any Series Seed CCPS that have not been converted into Equity Shares shall, compulsorily convert into Equity Shares upon the earlier of:
- (i) In connection with listing of Company's securities, immediately prior to the filing of an offer document (or equivalent document, by whatever name called) with the competent authority or such later date as may be permitted under applicable Law at the relevant time; and
 - (ii) The date which is one day prior to 19 (nineteen) years from the date of allotment of the Series Seed CCPS.
- 5.4 **Optional Conversion**
- (i) The holders of the Series Seed CCPS shall have the right, at any time and from time to time after the Closing Date, to require the Company, by written notice (the "**Series Seed Conversion Notice**"), to convert all or a portion of the Series Seed CCPS into Equity Shares.
 - (ii) The Series Seed Conversion Notice shall be dated and shall set forth:
 - (a) The number of Series Seed CCPS in respect of which the holder of the Series Seed CCPS is exercising its right to conversion in accordance with this paragraph 5; and
 - (b) The number of Equity Shares that such Series Seed CCPS shall convert into.
 - (iii) Upon receipt of the Series Seed Conversion Notice, the Company shall:
 - (a) Convene a meeting of the Board, in which meeting the Company shall approve the following:
 - (A) The conversion of such number of the Series Seed CCPS as are mentioned in the Series Seed Conversion Notice;
 - (B) The cancellation of the share certificates representing such number of the Series Seed CCPS; and
 - (C) The issuance and allotment of such number of Equity Shares, in each case, as are mentioned in the Series Seed Conversion Notice;
 - (b) Issue duly stamped share certificates to the holders of the Series Seed CCPS to evidence such holders of the Series Seed CCPS as the owners of the Equity Shares issued upon conversion of such number of the Series Seed CCPS as are mentioned in the Series Seed Conversion Notice; and
 - (c) Update its register of members to reflect the holders of the Series Seed CCPS as the owners of the Equity Shares issued pursuant to the conversion of such number of the Series Seed CCPS as are mentioned in the Series Seed Conversion Notice.



- (iv) No fractional Equity Shares shall be issued upon conversion of Series Seed CCPS. In the event the computation of the number of Equity Shares to be issued, results in a fraction, then:
- (a) in case the fraction is up to 0.49, then the number of Equity Shares to be issued upon conversion of Series Seed CCPS shall be rounded off to the lower whole number; and
 - (b) in case the fraction is 0.5 or more, then the number of Equity Shares to be issued upon conversion of Series Seed CCPS shall be rounded off to the higher whole number.

6. As to capital

On a distribution of capital upon occurrence of Liquidation Event, the assets of the Company available for distribution to its members shall be applied in the manner set forth in Article 99 (*Liquidation Preference*) of the Shareholders Agreement.

7. Anti-dilution

The Lead Investors shall be entitled to such anti-dilution right as set out in Article 98 (*Anti Dilution*) of the Shareholders Agreement.

8. Transferability

The Series Seed CCPS shall be transferable in accordance with the terms of the Transaction Documents.

9. Superior Rights

The holders of the Series Seed CCPS shall be entitled to all superior rights (i) over any other Shares including Equity Shares; and (ii) that are not presently included in the terms of issue of the Series Seed CCPS, that the Company may grant to any other class of securities issued at a price not more than the price of Series Seed CCPS, if any, in the future.



SCHEDULE II

Reserved Matters

The Company and its subsidiaries shall not take any actions pertaining to the following matters, whether in a general meeting or a meeting of the Board or otherwise, without the prior written consent of the Lead Investor 1:

- i. any amendment, supplement, modification or restatement to the memorandum or articles of association of the Company, or the Board or any committee of the Board;
- ii. any change in the registered office of the Company;
- iii. creation of any new class of securities which have superior rights than the Subscription Securities or any variation of rights, preferences, power, privileges or restrictions of securities issued by the Company, or any price dilutive issuance;
- iv. any material change in the scope, nature and/or activities of the Business, closure/ cessation of any existing business of the Company (in whole or in part), or the commencement of any new business (including diversification into business lines/ areas unrelated to the existing business of the Company) or undertaking any business not being the Business or expansion of the Business outside India (other than as set out in the business plan);
- v. approval of the Business Plan, budget, deviation of more than 10% (ten percent) from the budget approved by the Investor, and any amendments/ deviations thereto.
- vi. any appointment, termination, or any change in terms of appointment of any Founder or key employee or senior management employees or other such personnel, by whatever name called, discharging similar functions as discharged by any of the aforesaid designated persons;
- vii. appointment of, removal of or change in the statutory or internal auditors of the Company;
- viii. any adoption of or change in accounting principles and accounting policies (including tax policies) of the Company which are materially different from the policies of the Company existing as of the Tranche I Closing Date;
- ix. any change of Control of the Company or any merger, amalgamation, acquisition, restructuring, buy-back, capital reduction, reorganisation and/or consolidation;
- x. entry into (or the amendment, variation or termination of) any: (a) shareholders' agreement, (b) joint venture; and/or (c) any commercial arrangement with any competitor or any person engaged in a competing business;



- xi. sale, mortgage, disposal, transfer, or creation of any charge encumbrance or a security interest over any assets or over the intellectual property which is not envisaged under the annual budget or business plan, or which is outside the ordinary course of business;
- xii. voluntary liquidation, winding-up, bankruptcy, reclassification, recapitalisation or dissolution of the Company or entering into any compromise with any of the creditors or any class of creditors by the Company, or any similar transaction of the Company;
- xiii. approval or adoption of audited accounts (including any amendments, modifications, addendum or additions thereto) of the Company;
- xiv. acquisition, investment, sale or divestment of any shares, securities, ownership interests or assets in/of any person;
- xv. capital expenditure or investments by the Company in excess of 10% (Ten percent) of the amounts agreed in the prevailing Business Plan;
- xvi. creation, increase, approval or amendment of any employee stock option plan or any other employee incentive or benefit plan;
- xvii. granting any share option or similar incentive or equity plan or right to subscribe the Share Capital to an individual and/ or acquire or convert into Shares, issuance of sweat equity shares, any of the above being greater than 0.5% (zero point five percent) of the share capital of the Company;
- xviii. incurring or assuming any indebtedness, borrowing or liability by the Company, or issue/ redemption of any loan/ debt capital of the Company, providing any debt or financial assistance to any other entity/ person, or any pre-payment/ early repayment of any such loan or financial assistance , in excess of INR 10,00,000 (Indian Rupees Ten Lakhs Only), in each case other than as envisaged in the prevailing business plan approved by the Investor;
- xix. entering into or amendment of any agreement or contract by the Company with any Related Party, including but not limited to (a) extending any credit (whether secured or unsecured); and (b) availing any loans or advances;
- xx. approve the timing, structure, pricing and other details relating to any initial public offer, strategic sale or any trade sale of the Company including appointment of merchant bankers, valuers and advisors in relation to the same;
- xxi. any commitment or agreement to do or delegation of power to do any of the above, including in relation to the Company's subsidiaries.



Subscriber Details

S. No.	Subscriber Details				
	*Name, Address, Description and Occupation	DIN / PAN / Passport number	*Place	DSC	Dated
1	CHERUKURU NARAYANAN SRIDHARAN	0*0*4*0*	Chennai	Sridharan C N	17/02/2026
2	SUSEENDAR .	0*5*8*8*	Chennai	M Suseendaran	17/02/2026

Signed before me

Name Prefix (ACA/FCA/ACS/ FCS/ACMA/ FCMA)	*Name of the witness	*Address, Description and Occupation	*DIN / PAN / Passport number / Membership	*Place	DSC	Dated
	Rishab Sethi ya	Suite A-1, Shakti Towers - III, 4th Floor, 766, Anna Salai, Chennai - 600002	2*3*7*	Chennai	RISHAB SETHI	17/02/2026

